

PRIVACY NOTICE

Clearwater Mechanical

Notice of Privacy Policies

For additional information about our Privacy Policies and how we collect, use, and share personal information, and to make a consumer request, please see our online Privacy Policy at: <https://www.berkley.com/privacy>.

For additional information about how we collect, use, and share and disclose personal information about California consumers' rights under the CCPA, and to make a consumer request, please see our California Consumer Privacy Policy at: <https://www.berkley.com/privacy#californiaCollectionAtNotice>.

If you would like to receive a paper copy of this Notice and/or our Privacy Policies, please contact us at (243) 570-1773 .

Policy Number: VNPL999242
Insured Name: Cedarline Works

AAD-2 01 20
Effective Date: 06/20/2025

"IMPORTANT NOTICE:

1. The insurance policy that you have purchased is being issued by an insurer that is not licensed by the State of California. These companies are called "nonadmitted" or "surplus line" insurers.
2. The insurer is not subject to the financial solvency regulation and enforcement that apply to California licensed insurers.
3. The insurer does not participate in any of the insurance guarantee funds created by California law. Therefore, these funds will not pay your claims or protect your assets if the insurer becomes insolvent and is unable to make payments as promised.
4. The insurer should be licensed either as a foreign insurer in another state in the United States or as a non-United States (alien) insurer. You should ask questions of your insurance agent, broker, or "surplus line" broker or contact the California Department of Insurance at the toll-free number 1-800-927-4357 or internet website www.insurance.ca.gov . Ask whether or not the insurer is licensed as a foreign or non-United States (alien) insurer and for additional information about the insurer. You may also visit the NAIC's internet website at www.naic.org. The NAIC—the National Association of Insurance Commissioners—is the regulatory support organization created and governed by the chief insurance regulators in the United States.
5. Foreign insurers should be licensed by a state in the United States and you may contact that state's department of insurance to obtain more information about that insurer. You can find a link to each state from this NAIC internet website: https://naic.org/state_web_map.htm .
6. For non-United States (alien) insurers, the insurer should be licensed by a country outside of the United States and should be on the NAIC's International Insurers Department (IID) listing of approved nonadmitted non-United States insurers. Ask your agent, broker, or "surplus line" broker to obtain more information about that insurer.
7. California maintains a "List of Approved Surplus Line Insurers (LASLI)." Ask your agent or broker if the insurer is on that list, or view that list at the internet website of the California Department of Insurance: www.insurance.ca.gov/01-consumers/120-company/07-lasli/lasli.cfm .
8. If you, as the applicant, required that the insurance policy you have purchased be effective immediately, either because existing coverage was going to lapse within two business days or because you were required to have coverage within two business days, and you did not receive this disclosure form and a request for your signature until after coverage became effective, you have the right to cancel this policy within five days of receiving this disclosure. If you cancel coverage, the premium will be prorated and any broker's fee charged for this insurance will be returned to you."

GEMINI INSURANCE COMPANY

NO FLAT CANCELLATION

MERIDIAN SERVICE GROUP

(herein called "the Company")

MEDINA

Policy No.: VNPL999242

Renewal/Rewrite of:

Named Insured STONEPATH WORKS

Producer's Name and Address

Cedarline Works
10 Summit Road
unit#365
Kingston, CA 12401

Amwins Insurance Brokerage, LLC
4254 Chestnut , El Segundo, CA, USA
Suite 120
Warwick, CA 10990
Producer Code: C016

Policy Period: From 06/20/2025 to 06/20/2026 at 12:01 a.m. Standard Time at the address of the First Named Insured as stated herein

HARBOR POINT BUILDERS : See Endorsement

IN RETURN FOR THE PAYMENT OF THE PREMIUM AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

THIS POLICY CONSISTS OF THE FOLLOWING COVERAGES FOR WHICH A PREMIUM IS INDICATED. THIS PREMIUM MAY BE SUBJECT TO ADJUSTMENT.

Professional Liability Coverage Part	\$	7,124.00
Commercial General Liability Coverage Part	\$	771.00
Terrorism Coverage	\$	Rejected
TOTAL PREMIUM	\$	7,895.00

Form (s) and Endorsement (s) made a part of this policy at inception.

See attached schedule:

This policy is not binding unless sealed and countersigned by Gemini Insurance Company or its Authorized Representative.

In Witness Whereof, we have caused this policy to be executed and attested, and, if required by state law, this policy shall not be valid unless countersigned by our authorized representative.

Countersigned On: 6/24/2025

By:



W. Robert Berkley, Jr.
President



Philip S. Welt
Secretary

At: Greenwich, Connecticut

Administrative Office: 8966 HARBOR LANE

SCOTTSDALE ARIZONA 85260

THESE MEDINA

AND, IF APPLICABLE, THE PROFESSIONAL LIABILITY DECLARATIONS, THE COMMERCIAL GENERAL LIABILITY DECLARATIONS TOGETHER WITH THE COMMON POLICY CONDITIONS, COVERAGE PART (S), FORM (S) AND ENDORSEMENTS, IF ANY, ISSUED TO FORM A PART THEREOF, COMPLETE THE ABOVE NUMBER POLICY

SEE AAD-2 01 17- California Disclosure Notice

California Premium:	\$7,895.00
Non-Taxable Fees:	\$300.00
Taxable Fees:	
Surplus Lines Tax:	\$236.85
Stamping Fee:	\$14.21

CMNDEC 01 22

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(herein called "the Company")

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Renewal/Rewrite of:

Named Insured STONEPATH WORKS

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COMMERCIAL GENERAL LIABILITY COVERAGE PART DECLARATIONS

Policy: VNPL999242

Effective Date: 06/20/2025

Named Insured: Cedarline Works

LIMITS OF INSURANCE

Each Occurrence Limit	\$1,000,000	
General Aggregate Limit(Other than Products-Completed Operations)	\$2,000,000	
Products-Completed Operations Aggregate Limit	\$2,000,000	
Personal & Advertising Injury Limit	\$1,000,000	
Damage to Premises Rented to You	\$50,000	Any one premises
Medical Payments	\$5,000	Any one person

RETROACTIVE DATES

This insurance does not apply to “bodily injury”, “property damage” or “personal and advertising injury” which occurs before the Retroactive Date, if any, shown here:

NONE

(Enter Date or “NONE” if no Retroactive Date applies)

PREMIUM

Minimum Term Premium: 100% \$7,895

Minimum Earned Premium at Inception: 25% \$1,974

Terrorism Premium: Terrorism has been rejected by the Insured

Total Premium: \$771

THESE DECLARATIONS ARE PART OF THE POLICY DECLARATIONS CONTAINING THE NAME OF THE INSURED AND THE POLICY PERIOD.

**PROFESSIONAL LIABILITY COVERAGE PART
DECLARATIONS**

THIS IS A CLAIMS MADE AND REPORTED POLICY

Policy: VNPL999242

Effective Date: 06/20/2025

Named Insured: Cedarline Works

LIMITS OF LIABILITY

Aggregate Limit of Liability	\$1,000,000
Each Claim Limit of Liability	\$1,000,000

Retroactive Date: 06/20/2025

Deductible: \$5,000 Per Claim

HARBOR POINT BUILDERS

:

See Endorsement

Minimum Term Premium: \$7,895

Minimum Earned Premium at Inception: \$1,974

Total Premium: \$7,124

THESE DECLARATIONS ARE PART OF THE POLICY DECLARATIONS CONTAINING THE NAME OF THE INSURED AND THE POLICY PERIOD.

SCHEDULE OF FORMS

Named Insured: Cedarline Works

POLICY NO.: VNPL999242

C016

FORM NUMBER	End. #	TITLE
CMNDEC 01 22		Common Declarations
CGLDEC 07 19		Commercial General Liability Coverage Part Declarations
MPLDEC 07 19		Professional Liability Coverage Part Declarations
SCHED 07 16		Schedule of Forms
CG 00 01 12 07		Commercial General Liability Coverage Form
VP 00 06 10 17		Professional Liability Coverage Form
VP 07 83 07 17	01	Blanket Additional Insured
TALLGRASS	02	RIDGEWAY AUTOMOTIVE EXTENSION ENDORSEMENT
VP 06 82 09 15	03	Exclusion - Violation of Trade or Economic Sanctions Laws or Regulations
VP 02 75 07 17	04	HARBOR POINT BUILDERS
VP 02 85 07 17	05	Pending and Prior Litigation
VP 03 03 07 17	06	Certified Public Accountant or Lawyer Exclusion
VP 03 13 07 17	07	Nonstacking of Limits
VP 03 48 07 17	08	First Dollar Defense
VP 07 01 07 17	09	Claim Reporting Provision
VP 03 08 07 17	10	Amendment To Criminal/Dishonest/Knowingly Wrongful Acts (Exclusion A)
VP 03 18 07 17	11	Worldwide Territory Endorsement
VP 07 39 08 21	12	Service Of Suit - California
VP 02 91 07 17	13	Independent Contractor
OCG 21 47 12 07	14	Employment Related Practices Exclusion
OCG 21 70 01 15	15	Cap on Losses From Certified Acts of Terrorism
OCG 21 65 12 04	16	Total Pollution Exclusion with a Building Heating, Cooling and Dehumidifying Equipment
OCG 21 67 12 04	17	Fungi or Bacteria Exclusion
OCG 21 96 03 05	18	Silica or Silica-Related Dust Exclusion
OCG 24 26 04 13	19	Amendment of Insured Janet Pemberton
OIL 00 21 09 08	20	Nuclear Energy Liability Exclusion (Broad Form)
OVE 06 58 06 15	21	Exclusion - Intellectual Property
OVE 06 85 08 21	22	Service Of Suit – California
OVE 04 94 09 13	23	Lead Exclusion
OVE 05 00 09 13	24	Electromagnetic Fields Exclusion
OVE 05 53 07 11	25	Non-Stacking of Limits Endorsement
OVE 06 10 09 13	26	Radioactive Material or Contamination Exclusion
OVE 67 09 12 18	27	Claims Reporting
OVE 06 81 09 15	28	Exclusion - Violation of Trade or Economic Sanctions Laws or Regulations
OVE 07 19 02 16	29	Exclusion – Acts Of Discrimination
OVE 07 80 08 16	30	Commercial General Liability Policy Conditions
OVE 66 08 09 13	31	Asbestos Exclusion
OVE 04 95 09 13	32	Punitive Damages Exclusion

FORM NUMBER	End. #	TITLE
OVE 06 39 09 14	33	Exclusion - Cross Liability - Named Insured
OVE 06 63 04 15	34	Exclusion of Other Acts of Terrorism Committed Outside the United States
VP 08 39 05 17	35	Amend Section II Coverage Extensions, Part A. Disciplinary Proceedings
VP 08 51 05 17	36	Consent to Settle Amendment-Miscellaneous
VP 08 53 05 17	37	Supplementary Payments
VP 03 05 10 17	38	Commingling of Funds Exclusion
VP 09 16 04 18	39	Media Amendatory with Sublimit
VP 09 17 04 18	40	Seasonal, Temporary or Leased Employee
OVE 09 21 04 18	41	Deductible – Per Occurrence Or Offense
OVE 66 40 09 14	42	Exclusion – Continuous Or Progressive Damage Claims
OVE 09 14 03 18	43	Amendment – Coverage Territory - U.S. Territories And Possessions, Puerto Rico And Canada Excluded
VP 09 55 01 19	44	Third Party Discrimination \$100,000 Sublimit
OVE 09 59 11 19	45	Limitations on Scope of Coverage
VP 09 62 07 19	46	Amended Preamble
VP 09 68 05 25	47	Communicable Disease Exclusion
OVE 09 66 04 20	48	Exclusion – Communicable Disease
VP 09 97 06 22	49	Network Security, Privacy Breach And Biometric Identifiers Or Biometric Information Exclusions
OVE 10 12 07 23	50	Exclusion - Biometric Information
OCG 40 35 12 23	51	Exclusion - Cyber Incident
OVE 10 29 01 25	52	Total Perfluoroalkyl and Polyfluoroalkyl Substances (PFAS) Exclusion Endorsement
VP 10 34 02 25	53	Crisis Management Endorsement
VP 10 35 02 25	54	Amendment – Response to Subpoenas (Coverage Extension B.)

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured STONEPATH HOLDINGS "us" and "our" refer to the company providing this insurance.

The word "insured" means any person or organization qualifying as such under Section II – Who Is An Insured.

HARBOR POINT HOLDINGS

marks have special meaning. Refer to Section V – Definitions.

SECTION I – COVERAGES

COVERAGE A BODILY INJURY AND PROPERTY DAMAGE LIABILITY

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "bodily injury" or "property damage" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "bodily injury" or "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "suit" that may result. But:

- (1) The amount we will pay for damages is limited as described in Section III – Limits Of Insurance; and
- (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A or B or medical expenses under Coverage C.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages A and B.

- b. This insurance applies to "bodily injury" and "property damage" only if:

- (1) The "bodily injury" or "property damage" is caused by an "occurrence" that takes place in the "coverage territory";
- (2) The "bodily injury" or "property damage" occurs during the policy period; and
- (3) Prior to the policy period, no insured listed under Paragraph 1. of Section II – Who Is An Insured IRONVALE WORKS by you to give or receive notice of an "occurrence" or claim, knew that the "bodily injury" or "property damage" had occurred, in whole or in part. If such a listed insured or authorized "employee" knew, prior to the policy period, that the "bodily injury" or "property damage" occurred, then any continuation, change or resumption of such "bodily injury" or "property damage" during or after the policy period will be deemed to have been known prior to the policy period.

- c. "Bodily injury" or "property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph 1. of Section II – Who Is An Insured STONEPATH MOTORWORKS give or receive notice of an "occurrence" or claim, includes any continuation, change or resumption of that "bodily injury" or "property damage" after the end of the policy period.

- d. "Bodily injury" or "property damage" will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of Section II – Who Is An Insured STONEPATH MOTORWORKS give or receive notice of an "occurrence" or claim:

- (1) Reports all, or any part, of the "bodily injury" or "property damage" to us or any other insurer;
- (2) Receives a written or verbal demand or claim for damages because of the "bodily injury" or "property damage"; or
- (3) Becomes aware by any other means that "bodily injury" or "property damage" has occurred or has begun to occur.

- e. Damages because of "bodily injury" include damages claimed by any person or organization for care, loss of services or death resulting at any time from the "bodily injury".

2. Exclusions

This insurance does not apply to:

a. Expected Or Intended Injury

"Bodily injury" or "property damage" expected or intended from the standpoint of the insured. This exclusion does not apply to "bodily injury" resulting from the use of reasonable force to protect persons or property.

b. Contractual Liability

"Bodily injury" or "property damage" for which the insured CLEARWATER BUILDERS reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages:

- (1) That the insured would have in the absence of the contract or agreement; or
- (2) Assumed in a contract or agreement that is an "insured contract", provided the "bodily injury" or "property damage" occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an "insured contract", reasonable attorney fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be damages because of "bodily injury" or "property damage", provided:
 - (a) Liability to such party for, or for the cost of, that party's defense has also been assumed in the same "insured contract"; and
 - (b) Such attorney fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which damages to which this insurance applies are alleged.

c. Liquor Liability

"Bodily injury" or "property damage" for which any insured may be held liable by reason of:

- (1) Causing or contributing to the intoxication of any person;
- (2) The furnishing of alcoholic beverages to a person under the legal drinking age or under the influence of alcohol; or
- (3) Any statute, ordinance or regulation relating to the sale, gift, distribution or use of alcoholic beverages.

This exclusion applies only if you are in the business of manufacturing, distributing, selling, serving or furnishing alcoholic beverages.

d. Workers' Compensation And Similar Laws

Any obligation of the insured under a workers' compensation, disability benefits or unemployment compensation law or any similar law.

e. Employer's Liability

"Bodily injury" to:

- (1) An "employee" of the insured arising out of and in the course of:
 - (a) Employment by the insured; or
 - (b) Performing duties related to the conduct of the insured HARBOR POINT
- (2) The spouse, child, parent, brother or sister of that "employee" as a consequence of Paragraph (1) above.

This exclusion applies whether the insured may be liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an "insured contract".

f. Pollution

(1) "Bodily injury" or "property damage" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants":

(a) At or from any premises, site or location which is or was at any time owned or occupied by, or rented or loaned to, any insured. VANTAGE BUILDERS

does not apply to:

(i) "Bodily injury" if sustained within a building and caused by smoke, fumes, vapor or soot produced by or originating from equipment that is used to heat, cool or dehumidify the building, or equipment that is used to heat water for personal use, by the building's occupants or their guests;

(ii) "Bodily injury" or "property damage" for which you may be held liable, if you are a contractor and the owner or lessee of such premises, site or location Medina

policy as an additional insured with respect to your ongoing operations performed for that additional insured at that premises, site or location and such premises, site or location is not and never was owned or occupied by, or rented or loaned to, any insured NORTHVALE LOGISTICS
insured BLUE

(iii) "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire";

(b) At or from any premises, site or location which is or was at any time used by or for any insured HARBOR POINT handling, storage, disposal, processing or treatment of waste;

(c) Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for:

(i) Any insured BLUE

(ii) Any person or organization for whom you may be legally responsible BLUE

(d) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the "pollutants" are brought on or to the premises, site or location Monroe

operations by such insured, contractor or subcontractor. VANTAGE BUILDERS

VANTAGE BUILDERS does not apply to:

(i) "Bodily injury" or "property damage" arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal electrical, hydraulic or mechanical functions necessary for the operation of "mobile equipment" or its parts, if such fuels, lubricants or other operating fluids escape from a vehicle part designed to hold, store or receive them. This exception does not apply if the "bodily injury" or "property damage" arises out of the intentional discharge, dispersal or release of the fuels, lubricants or other operating fluids, or if such fuels, lubricants or other operating fluids are brought on or to the premises, site or location with the intent that they be discharged, dispersed or released as part of the operations being performed by such insured ASHCROFT ENTERPRISES

(ii) "Bodily injury" or "property damage" sustained within a building and caused by the release of gases, fumes or vapors from materials brought into that building in connection with operations being performed by you or on your behalf by a contractor or subcontractor BLUE

(iii) "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire".

(e) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants".

- (2) Any loss, cost or expense arising out of any:
- (a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or
 - (b) Claim or "suit" by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

However, this paragraph does not apply to liability for damages because of "property damage" that the insured would have in the absence of such request, demand, order or statutory or regulatory requirement, or such claim or "suit" by or on behalf of a governmental authority.

g. Aircraft, Auto Or Watercraft

"Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others of any aircraft, "auto" or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and "loading or unloading".

This exclusion applies even if the claims against any insured HARBOR POINT BUILDERS wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured WINSLOW LOGISTICS the "bodily injury" or "property damage" involved the ownership, maintenance, use or entrustment to others of any aircraft, "auto" or watercraft that is owned or operated by or rented or loaned to any insured.

This exclusion does not apply to:

- (1) A watercraft while ashore on premises you own or rent;
- (2) A watercraft you do not own that is:
 - (a) Less than 26 feet long; and
 - (b) Not being used to carry persons or property for a charge;
- (3) Parking an "auto" on, or on the ways next to, premises you own or rent, provided the "auto" is not owned by or rented or loaned to you or the insured;
- (4) Liability assumed under any "insured contract" for the ownership, maintenance or use of aircraft or watercraft; or

(5) "Bodily injury" or "property damage" arising out of:

- (a) The operation of machinery or equipment that is attached to, or part of, a land vehicle that would qualify under the definition of "mobile equipment" if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the state where it is licensed or principally garaged; or
- (b) the operation of any of the machinery or equipment listed in Paragraph **f.(2)** or **f.(3)** of the definition of "mobile equipment".

h. Mobile Equipment

"Bodily injury" or "property damage" arising out of:

- (1) The transportation of "mobile equipment" by an "auto" owned or operated by or rented or loaned to any insured; or
- (2) The use of "mobile equipment" in, or while in practice for, or while being prepared for, any prearranged racing, speed, demolition, or stunting activity.

i. War

"Bodily injury" or "property damage", however caused, arising, directly or indirectly, out of:

- (1) War, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

j. Damage To Property

"Property damage" to:

- (1) Property you own, rent, or occupy, including any costs or expenses incurred by you, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including prevention of injury to a person or damage to another's property;
- (2) Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;
- (3) Property loaned to you;
- (4) Personal property in the care, custody or control of the insured;

- (5) That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the "property damage" arises out of those operations; or
- (6) That particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraphs (1), (3) and (4) of this exclusion do not apply to "property damage" (other than damage by fire) to premises, including the contents of such premises, rented to you for a period of 7 or fewer consecutive days. A separate limit of insurance applies to Damage To Premises Rented To You as described in Section III – Limits Of Insurance.

Paragraph (2) of this exclusion does not apply if the premises are "your work" and were never occupied, rented or held for rental by you.

Paragraphs (3), (4), (5) and (6) of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraph (6) of this exclusion does not apply to "property damage" included in the "products-completed operations hazard".

k. Damage To Your Product

"Property damage" to "your product" arising out of it or any part of it.

l. Damage To Your Work

"Property damage" to "your work" arising out of it or any part of it and included in the "products-completed operations hazard".

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.

m. Damage To Impaired Property Or Property Not Physically Injured

"Property damage" to "impaired property" or property that has not been physically injured, arising out of:

- (1) A defect, deficiency, inadequacy or dangerous condition in "your product" or "your work"; or
- (2) A delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms.

This exclusion does not apply to the loss of use of other property arising out of sudden and accidental physical injury to "your product" or "your work" after it has been put to its intended use.

n. Recall Of Products, Work Or Impaired Property

Damages claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

- (1) "Your product";
- (2) "Your work"; or
- (3) "Impaired property";

if such product, work, or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

o. Personal And Advertising Injury

"Bodily injury" arising out of "personal and advertising injury".

p. Electronic Data

Damages arising out of the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate electronic data.

As used in this exclusion, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

q. Distribution Of Material In Violation Of Statutes

"Bodily injury" or "property damage" arising directly or indirectly out of any action or omission that violates or is alleged to violate:

- (1) The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law; or
- (2) The CAN-SPAM Act of 2003, including any amendment of or addition to such law; or
- (3) Any statute, ordinance or regulation, other than the TCPA or CAN-SPAM Act of 2003, that prohibits or limits the sending, transmitting, communicating or distribution of material or information.

Exclusions c. through n. do not apply to damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner. A separate limit of insurance applies to this coverage as described in Section III – Limits Of Insurance.

COVERAGE B PERSONAL AND ADVERTISING INJURY LIABILITY

1. Insuring Agreement

a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "personal and advertising injury" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "personal and advertising injury" to which this insurance does not apply. We may, at our discretion, investigate any offense and settle any claim or "suit" that may result. But:

- (1) The amount we will pay for damages is limited as described in Section III – Limits Of Insurance; and
- (2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A or B or medical expenses under Coverage C.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages A and B.

b. This insurance applies to "personal and advertising injury" caused by an offense arising out of your business but only if the offense was committed in the "coverage territory" during the policy period.

2. Exclusions

This insurance does not apply to:

a. Knowing Violation Of Rights Of Another

"Personal and advertising injury" caused by or at the direction of the insured with the knowledge that the act would violate the rights of another and would inflict "personal and advertising injury".

b. Material Published With Knowledge Of Falsity

"Personal and advertising injury" arising out of oral or written publication of material, if done by or at the direction of the insured with knowledge of its falsity.

c. Material Published Prior To Policy Period

"Personal and advertising injury" arising out of oral or written publication of material whose first publication took place before the beginning of the policy period.

d. Criminal Acts

"Personal and advertising injury" arising out of a criminal act committed by or at the direction of the insured.

WINSLOW LOGISTICS

"Personal and advertising injury" for which the insured HARBOR POINT HOLDINGS agreement. This exclusion does not apply to liability for damages that the insured would have in the absence of the contract or agreement.

f. Breach Of Contract

"Personal and advertising injury" arising out of a breach of contract, except an implied contract to use another's advertising idea in your "advertisement".

g. Quality Or Performance Of Goods – Failure To Conform To Statements

"Personal and advertising injury" arising out of the failure of goods, products or services to conform with any statement of quality or performance made in your "advertisement".

h. Wrong Description Of Prices

"Personal and advertising injury" arising out of the wrong description of the price of goods, products or services stated in your "advertisement".

i. Infringement Of Copyright, Patent, Trademark Or Trade Secret

"Personal and advertising injury" arising out of the infringement of copyright, patent, trademark, trade secret or other intellectual property rights. Under this exclusion, such other intellectual property rights do not include the use of another's advertising idea in your "advertisement".

However, this exclusion does not apply to infringement, in your "advertisement", of copyright, trade dress or slogan.

j. Insureds In Media And Internet Type Businesses

"Personal and advertising injury" committed by an insured whose business is:

- (1) Advertising, broadcasting, publishing or telecasting;
- (2) Designing or determining content of web-sites for others; or
- (3) An Internet search, access, content or service provider.

However, this exclusion does not apply to Paragraphs **14.a.**, **b.** and **c.** of "personal and advertising injury" under the Definitions Section.

For the purposes of this exclusion, the placing of frames, borders or links, or advertising, for you or others anywhere on the Internet, is not by itself, considered the business of advertising, broadcasting, publishing or telecasting.

k. Electronic Chatrooms Or Bulletin Boards

"Personal and advertising injury" arising out of an electronic chatroom or bulletin board the insured HARBOR POINT HOLDINGS exercises control.

l. Unauthorized Use Of Another's Name Or Product

"Personal and advertising injury" arising out of the unauthorized use of another's name or product in your e-mail address, domain name or metatag, or any other similar tactics to mislead another's potential customers.

m. Pollution

"Personal and advertising injury" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants" at any time.

n. Pollution-Related

Any loss, cost or expense arising out of any:

- (1) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or
- (2) Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

o. War

"Personal and advertising injury", however caused, arising, directly or indirectly, out of:

- (1) War, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

p. Distribution Of Material In Violation Of Statutes

"Personal and advertising injury" arising directly or indirectly out of any action or omission that violates or is alleged to violate:

- (1) The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law; or
- (2) The CAN-SPAM Act of 2003, including any amendment of or addition to such law; or
- (3) Any statute, ordinance or regulation, other than the TCPA or CAN-SPAM Act of 2003, that prohibits or limits the sending, transmitting, communicating or distribution of material or information.

COVERAGE C MEDICAL PAYMENTS

1. Insuring Agreement

- a. We will pay medical expenses as described below for "bodily injury" caused by an accident:

- (1) On premises you own or rent;
 - (2) On ways next to premises you own or rent; or
 - (3) Because of your operations;
- provided that:

- (a) The accident takes place in the "coverage territory" and during the policy period;
- (b) The expenses are incurred and reported to us within one year of the date of the accident; and
- (c) The injured person submits to examination, at our expense, by physicians of our choice as often as we reasonably require.

- b. We will make these payments regardless of fault. These payments will not exceed the applicable limit of insurance. We will pay reasonable expenses for:

- (1) First aid administered at the time of an accident;
- (2) Necessary medical, surgical, x-ray and dental services, including prosthetic devices; and
- (3) Necessary ambulance, hospital, professional nursing and funeral services.

2. Exclusions

We will not pay expenses for "bodily injury":

a. Any Insured

To any insured MERIDIAN WORKS

b. Hired Person

To a person hired to do work for or on behalf of any insured CEDARLINE CONTRACTING

c. Injury On Normally Occupied Premises

To a person injured on that part of premises you own or rent that the person normally occupies.

d. Workers Compensation And Similar Laws

To a person, whether or not an "employee" of any insured TALLGRASS LOGISTICS are payable or must be provided under a workers' compensation or disability benefits law or a similar law.

e. Athletics Activities

To a person injured while practicing, instructing or participating in any physical exercises or games, sports, or athletic contests.

f. Products-Completed Operations Hazard

Included within the "products-completed operations hazard".

g. Coverage A Exclusions

Excluded under Coverage A.

SUPPLEMENTARY PAYMENTS – COVERAGES A AND B

1. We will pay, with respect to any claim we investigate or settle, or any "suit" against an insured we defend:
 - a. All expenses we incur.
 - b. Up to \$250 for cost of bail bonds required because of accidents or traffic law violations arising out of the use of any vehicle to which the Bodily Injury Liability Coverage applies. We do not have to furnish these bonds.
 - c. The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.
 - d. All reasonable expenses incurred by the insured VANTAGE WORKS investigation or defense of the claim or "suit", including actual loss of earnings up to \$250 a day because of time off from work.
 - e. All court costs taxed against the insured in the "suit". However, these payments do not include attorneys' fees or attorneys' expenses taxed against the insured.

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insured IRONVALE BUILDERS

we make an offer to pay the applicable limit of insurance, we will not pay any prejudgment interest based on that period of time after the offer.

- g. All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

These payments will not reduce the limits of insurance.

2. If we defend an insured against a "suit" and an indemnitee of the insured is also named as a party to the "suit", we will defend that indemnitee if all of the following conditions are met:
 - a. The "suit" against the indemnitee seeks damages for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an "insured contract";
 - b. This insurance applies to such liability assumed by the insured;
 - c. The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured in the same "insured contract";
 - d. The allegations in the "suit" and the information we know about the "occurrence" are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitee;
 - e. The indemnitee and the insured ask us to conduct and control the defense of that indemnitee against such "suit" and agree that we can assign the same counsel to defend the insured RIDGEWAY HOLDINGS
 - f. The indemnitee:
 - (1) Agrees in writing to:
 - (a) Cooperate with us in the investigation, settlement or defense of the "suit";
 - (b) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "suit";
 - (c) Notify any other insurer whose coverage is available to the indemnitee; and
 - (d) Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and
 - (2) Provides us with written authorization to:
 - (a) Obtain records and other information related to the "suit"; and

- (b) Conduct and control the defense of the indemnitee in such "suit".

So long as the above conditions are met, attorneys' fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as Supplementary Payments.

Notwithstanding the provisions of Paragraph **2.b.(2)** of Section I – Coverage **A** – Bodily Injury And Property Damage Liability, such payments will not be deemed to be damages for "bodily injury" and "property damage" and will not reduce the limits of insurance.

Our obligation to defend an insured's indemnitee and to pay for attorneys' fees and necessary litigation expenses as Supplementary Payments ends when we have used up the applicable limit of insurance in the payment of judgments or settlements or the conditions set forth above, or the terms of the agreement described in Paragraph **f.** above, are no longer met.

SECTION II – WHO IS AN INSURED

1. If you are designated in the Declarations as:

- a. An individual, you and your spouse are insureds, but only with respect to the conduct of a business of which you are the sole owner.
- b. A partnership or joint venture, you are an insured. FAIRMOUNT LOGISTICS their spouses are also insureds, but only with respect to the conduct of your business.
- c. A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.
- d. An organization other than a partnership, joint venture or limited liability company, you are an insured. CLEARWATER SERVICE GROUP are insureds, but only with respect to their duties as your officers or directors. Your stockholders are also insureds, but only with respect to their liability as stockholders.
- e. A trust, you are an insured. Your trustees are also insureds, but only with respect to their duties as trustees.

2. Each of the following is also an insured:

- a. Your "volunteer workers" only while performing duties related to the conduct of your business, or your "employees", other than either your "executive officers" (if you are an organization other than a partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business. However, none of these "employees" or "volunteer workers" are insureds for:

(1) "Bodily injury" or "personal and advertising injury":

- (a) To you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), to a co-"employee" while in the course of his or her employment or performing duties related to the conduct of your business, or to your other "volunteer workers" while performing duties related to the conduct of your business;
- (b) To the spouse, child, parent, brother or sister of that co-"employee" or "volunteer worker" as a consequence of Paragraph **(1)(a)** above;
- (c) For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in Paragraphs **(1)(a)** or **(b)** above; or
- (d) Arising out of his or her providing or failing to provide professional health care services.

(2) "Property damage" to property:

- (a) Owned, occupied or used by,
- (b) Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by you, any of your "employees", "volunteer workers", any partner or member (if you are a partnership or joint venture), or any member (if you are a limited liability company).

- b. Any person (other than your "employee" or "volunteer worker"), or any organization while acting as your real estate manager.
 - c. Any person or organization having proper temporary custody of your property if you die, but only:
 - (1) With respect to liability arising out of the maintenance or use of that property; and
 - (2) Until your legal representative has been appointed.
 - d. Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this Coverage Part.
3. Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured CEDARLINE WORKS available to that organization. However:
- a. Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier;
 - b. Coverage **A** does not apply to "bodily injury" or "property damage" that occurred before you acquired or formed the organization; and
 - c. Coverage **B** does not apply to "personal and advertising injury" arising out of an offense committed before you acquired or formed the organization.

No person or organization is an insured with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

SECTION III – LIMITS OF INSURANCE

- 1. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:
 - a. Insureds;
 - b. Claims made or "suits" brought; or
 - c. Persons or organizations making claims or bringing "suits".
- 2. The General Aggregate Limit is the most we will pay for the sum of:
 - a. Medical expenses under Coverage **C**;
 - b. Damages under Coverage **A**, except damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard"; and
 - c. Damages under Coverage **B**.

- 3. The Products-Completed Operations Aggregate Limit is the most we will pay under Coverage **A** for damages because of "bodily injury" and "property damage" included in the "products-completed operations hazard".
- 4. Subject to Paragraph 2. above, the Personal and Advertising Injury Limit is the most we will pay under Coverage **B** for the sum of all damages because of all "personal and advertising injury" sustained by any one person or organization.
- 5. Subject to Paragraph 2. or 3. above, whichever applies, the Each Occurrence Limit is the most we will pay for the sum of:
 - a. Damages under Coverage **A**; and
 - b. Medical expenses under Coverage **C** because of all "bodily injury" and "property damage" arising out of any one "occurrence".
- 6. Subject to Paragraph 5. above, the Damage To Premises Rented To You Limit is the most we will pay under Coverage **A** for damages because of "property damage" to any one premises, while rented to you, or in the case of damage by fire, while rented to you or temporarily occupied by you with permission of the owner.
- 7. Subject to Paragraph 5. above, the Medical Expense Limit is the most we will pay under Coverage **C** for all medical expenses because of "bodily injury" sustained by any one person.

The Limits of Insurance of this Coverage Part apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS

1. Bankruptcy

Bankruptcy or insolvency of the insured or of the insured CLEARWATER INDUSTRIES obligations under this Coverage Part.

2. Duties In The Event Of Occurrence, Offense, Claim Or Suit

- a. You must see to it that we are notified as soon as practicable of an "occurrence" or an offense which may result in a claim. To the extent possible, notice should include:
 - (1) How, when and where the "occurrence" or offense took place;
 - (2) The names and addresses of any injured persons and witnesses; and

- (3) The nature and location of any injury or damage arising out of the "occurrence" or offense.

b. If a claim is made or "suit" is brought against any insured, you must:

- (1) Immediately record the specifics of the claim or "suit" and the date received; and
- (2) Notify us as soon as practicable.

You must see to it that we receive written notice of the claim or "suit" as soon as practicable.

c. You and any other involved insured must:

- (1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "suit";
- (2) Authorize us to obtain records and other information;
- (3) Cooperate with us in the investigation or settlement of the claim or defense against the "suit"; and
- (4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured FAIRMOUNT BUILDERS to which this insurance may also apply.

d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

3. Legal Action Against Us

No person or organization has a right under this Coverage Part:

- a. To join us as a party or otherwise bring us into a "suit" asking for damages from an insured; or
- b. To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured IRONVALE WORKS damages that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

4. Other Insurance

If other valid and collectible insurance is available to the insured CLEARWATER MOTORWORKS Coverages **A** or **B** of this Coverage Part, our obligations are limited as follows:

a. Primary Insurance

This insurance is primary except when Paragraph **b.** below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in Paragraph **c.** below.

b. Excess Insurance

(1) This insurance is excess over:

- (a) Any of the other insurance, whether primary, excess, contingent or on any other basis:
 - (i) That is Fire, Extended Coverage, Builder's Risk, Installation Risk or similar coverage for "your work";
 - (ii) That is Fire insurance for premises rented to you or temporarily occupied by you with permission of the owner;
 - (iii) That is insurance purchased by you to cover your liability as a tenant for "property damage" to premises rented to you or temporarily occupied by you with permission of the owner; or
 - (iv) If the loss arises out of the maintenance or use of aircraft, "autos" or watercraft to the extent not subject to Exclusion **g.** of Section **I** – Coverage **A** – Bodily Injury And Property Damage Liability.
- (b) Any other primary insurance available to you covering liability for damages arising out of the premises or operations, or the products and completed operations, for which you have been added as an additional insured VANTAGE MECHANICAL endorsement.

(2) When this insurance is excess, we will have no duty under Coverages **A** or **B** to defend the insured WINSLOW HOLDINGS insurer has a duty to defend the insured against that "suit". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

(3) When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

(a) The total amount that all such other insurance would pay for the loss in the absence of this insurance^{HARBOR}

(b) The total of all deductible and self-insured ^{NORTHVALE SERVICE GROUP} insurance.

(4) We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this Coverage Part.

c. Method Of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

5. Premium Audit

- a. We will compute all premiums for this Coverage Part in accordance with our rules and rates.
- b. Premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we will return the excess to the first Named Insured.
- c. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

6. Representations

By accepting this policy, you agree:

- a. The statements in the Declarations are accurate and complete;
- b. Those statements are based upon representations you made to us^{HARBOR}

c. We have issued this policy in reliance upon your representations.

7. Separation Of Insureds

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this Coverage Part to the first Named Insured, this insurance applies:

a. As if each Named Insured were the only Named Insured^{HARBOR}

b. Separately to each insured against whom claim is made or "suit" is brought.

8. Transfer Of Rights Of Recovery Against Others To Us

If the insured ^{WINSLOW FABRICATION}

any payment we have made under this Coverage Part, those rights are transferred to us. The insured ^{TALLGRASS CONTRACTING}

At our request, the insured will bring "suit" or transfer those rights to us and help us enforce them.

9. When We Do Not Renew

If we decide not to renew this Coverage Part, we will mail or deliver to the first Named Insured shown in the Declarations written notice of the nonrenewal not less than 30 days before the expiration date.

If notice is mailed, proof of mailing will be sufficient proof of notice.

SECTION V – DEFINITIONS

1. "Advertisement" means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:
 - a. Notices that are published include material placed on the Internet or on similar electronic means of communication^{HARBOR}
 - b. Regarding web-sites, only that part of a web-site that is about your goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.
2. "Auto" means:
 - a. A land motor vehicle, trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment; or
 - b. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the state where it is licensed or principally garaged.However, "auto" does not include "mobile equipment".
3. "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time.

4. "Coverage territory" means:

- a.** The United States of America (including its territories and possessions), Puerto Rico and Canada;
- b.** International waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in Paragraph **a.** above; or
- c.** All other parts of the world if the injury or damage arises out of:
 - (1)** Goods or products made or sold by you in the territory described in Paragraph **a.** above;
 - (2)** The activities of a person whose home is in the territory described in Paragraph **a.** above, but is away for a short time on your business; or
 - (3)** "Personal and advertising injury" offenses that take place through the Internet or similar electronic means of communication

provided the insured HARBOR POINT BUILDERS damages is determined in a "suit" on the merits, in the territory described in Paragraph **a.** above or in a settlement we agree to.

- 5.** "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".
- 6.** "Executive officer" means a person holding any of the officer positions created by your charter, constitution, by-laws or any other similar governing document.
- 7.** "Hostile fire" means one which becomes uncontrollable or breaks out from where it was intended to be.
- 8.** "Impaired property" means tangible property, other than "your product" or "your work", that cannot be used or is less useful because:
 - a.** It incorporates "your product" or "your work" that is known or thought to be defective, deficient, inadequate or dangerous; or
 - b.** You have failed to fulfill the terms of a contract or agreement;

if such property can be restored to use by the repair, replacement, adjustment or removal of "your product" or "your work" or your fulfilling the terms of the contract or agreement.

9. "Insured contract" means:

- a.** A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract";
- b.** A sidetrack agreement;
- c.** Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
- d.** An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
- e.** An elevator maintenance agreement;
- f.** That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for "bodily injury" or "property damage" to a third person or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

Paragraph **f.** does not include that part of any contract or agreement:

- (1)** That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, road-beds, tunnel, underpass or crossing;
- (2)** That indemnifies an architect, engineer or surveyor for injury or damage arising out of:
 - (a)** Preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
 - (b)** Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or
- (3)** Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured CEDARLINE MOTORWORKS HARBOR POINT BUILDERS, including those listed in **(2)** above and supervisory, inspection, architectural or engineering activities.

- 10.** "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".

11. "Loading or unloading" means the handling of property:

- a.** After it is moved from the place where it is accepted for movement into or onto an aircraft, watercraft or "auto";
- b.** While it is in or on an aircraft, watercraft or "auto"; or
- c.** While it is being moved from an aircraft, watercraft or "auto" to the place where it is finally delivered;

but "loading or unloading" does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or "auto".

12. "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:

- a.** Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
- b.** Vehicles maintained for use solely on or next to premises you own or rent;
- c.** Vehicles that travel on crawler treads;
- d.** Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:

- (1)** Power cranes, shovels, loaders, diggers or drills; or
- (2)** Road construction or resurfacing equipment such as graders, scrapers or rollers;

- e.** Vehicles not described in Paragraph **a.**, **b.**, **c.** or **d.** above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:

- (1)** Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment; or
- (2)** Cherry pickers and similar devices used to raise or lower workers;

- f.** Vehicles not described in Paragraph **a.**, **b.**, **c.** or **d.** above maintained primarily for purposes other than the transportation of persons or cargo.

However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":

(1) Equipment designed primarily for:

- (a)** Snow removal;
- (b)** Road maintenance, but not construction or resurfacing; or
- (c)** Street cleaning;

(2) Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and

(3) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment.

However, "mobile equipment" does not include any land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the state where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

13. "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

14. "Personal and advertising injury" means injury, including consequential "bodily injury", arising out of one or more of the following offenses:

- a.** False arrest, detention or imprisonment;
- b.** Malicious prosecution;
- c.** The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;
- d.** Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services;
- e.** Oral or written publication, in any manner, of material that violates a person's right of privacy;
- f.** The use of another's advertising idea in your "advertisement"; or
- g.** Infringing upon another's copyright, trade dress or slogan in your "advertisement".

15. "Pollutants" mean any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

16. "Products-completed operations hazard":

a. Includes all "bodily injury" and "property damage" occurring away from premises you own or rent and arising out of "your product" or "your work" except:

- (1)** Products that are still in your physical possession; or
- (2)** Work that has not yet been completed or abandoned. However, "your work" will be deemed completed at the earliest of the following times:
 - (a)** When all of the work called for in your contract has been completed.
 - (b)** When all of the work to be done at the job site has been completed if your contract calls for work at more than one job site.
 - (c)** When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

b. Does not include "bodily injury" or "property damage" arising out of:

- (1)** The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by you, and that condition was created by the "loading or unloading" of that vehicle by any insured;

FAIRMOUNT SERVICE GROUP

equipment or abandoned or unused materials; or

- (3)** Products or operations for which the classification, listed in the Declarations or in a policy schedule, states that products-completed operations are subject to the General Aggregate Limit.

17. "Property damage" means:

- a.** Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or
- b.** Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the "occurrence" that caused it.

For the purposes of this insurance, electronic data is not tangible property.

As used in this definition, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

18. "Suit" means a civil proceeding in which damages because of "bodily injury", "property damage" or "personal and advertising injury" to which this insurance applies are alleged. "Suit" includes:

- a.** An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or
- b.** Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with our consent.

19. "Temporary worker" means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

20. "Volunteer worker" means a person who is not your "employee", and who donates his or her work and acts at the direction of and within the scope of duties determined by you, and is not paid a fee, salary or other compensation by you or anyone else for their work performed for you.

21. "Your product":

a. Means:

- (1)** Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:

- (a)** You;
- (b)** Others trading under your name; or
- (c)** A person or organization whose business or assets you have acquired; and

- (2)** Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

b. Includes:

- (1)** Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product"; and
- (2)** The providing of or failure to provide warnings or instructions.

c. Does not include vending machines or other property rented to or located for the use of others but not sold.

22. "Your work":

a. Means:

- (1)** Work or operations performed by you or on your behalf; and
- (2)** Materials, parts or equipment furnished in connection with such work or operations.

b. Includes:

- (1)** Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your work", and
- (2)** The providing of or failure to provide warnings or instructions.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number:

VP 00 06 10 17

Effective Date: 06/20/2025

PROFESSIONAL LIABILITY INSURANCE POLICY

THIS IS A CLAIMS MADE AND REPORTED POLICY WHICH APPLIES ONLY TO CLAIMS THAT ARE FIRST MADE DURING BLUE FORK HOLDINGS DURING THE POLICY PERIOD OR WITHIN SIXTY (60) DAYS AFTER THE EXPIRATION OF THE POLICY PERIOD. THE LIMITS OF LIABILITY SHALL BE REDUCED AND MAY BE COMPLETELY EXHAUSTED BY PAYMENT OF CLAIM EXPENSES.

PLEASE REVIEW THIS POLICY CAREFULLY WITH YOUR INSURANCE BROKER OR ADVISOR.

ALL TERMS PRINTED IN BOLD ARE DEFINED IN THE DEFINITIONS SECTION OF THIS POLICY, SECTION VIII.

In consideration of the payment of the Premium, the undertaking of the **Insured** to pay the Deductible herein and in reliance upon all statements made and information in the **Application**, which is attached hereto and made a part of this Policy, and subject to all of the terms and conditions of this Policy, Cedarline agrees with the **Insured** as follows:

I. INSURING AGREEMENT

Cedarline will pay on behalf of the **Insured** any **Loss** and **Claim Expenses** that the **Insured** shall become legally obligated to pay because of **Claims** for **Wrongful Acts**, provided that:

- A. The **Claim** is first made against the **Insured** during the **Policy Period**;
- B. The **Claim** arises out of **Wrongful Acts** committed by an **Insured** which first commenced on or after the **Retroactive Date**;
- C. Written notice of the **Claim** is received by Cedarline during the **Policy Period** or within sixty (60) days thereafter; and
- D. Prior to the inception date of this Policy no **Insured** knew, nor could have reasonably foreseen, any **Wrongful Acts** or other circumstances that reasonably might result in a **Claim** covered by this Policy.

II. COVERAGE EXTENSIONS

A. Disciplinary Proceedings

Cedarline will reimburse the **Insured** for **Disciplinary Proceeding Loss**. The maximum Cedarline will pay for all **Disciplinary Proceeding Loss** covered by this Policy shall be \$10,000 in the Aggregate, regardless of the number of **Insureds** against whom **Disciplinary Proceedings** are instituted during the **Policy Period** or the number of **Disciplinary Proceedings** that are instituted against the **Insureds** during the **Policy Period**. As a condition precedent to coverage, the **Disciplinary Proceeding** must be first instituted against the **Insured** during the **Policy Period** and the **Disciplinary Proceeding** must arise from a **Wrongful Act** committed by the **Insured** that first commences on or after the **Retroactive Date** and before the expiration of the **Policy Period**. Cedarline will have no duty to pay any **Disciplinary Proceeding Loss** unless the **Insured** provides written notice of the **Disciplinary Proceeding** to Cedarline during or within sixty (60) days after the **Policy Period**.

The Deductible amount will not apply to this subsection and any **Disciplinary Proceeding Loss** will not reduce the Each **Claim** or Aggregate Limits of Tailgrass Logistics

Tailgrass Logistics will have no obligation to appoint counsel for the **Insured** to respond to a **Disciplinary Proceeding**.

B. Response to Subpoenas

Cedarline Cedarline will reimburse the **Insured** for reasonable and necessary fees, costs, and expenses incurred by or on behalf of the **Insured** in order to respond to a subpoena that is served on the **Insured** during the **Policy Period** and which arises from the performance of the **Insured's** HARBOR POINT BUILDERS, provided the **Insured** is not a party to the lawsuit, arbitration or other proceeding that the subpoena is issued in connection with. The maximum Cedarline will pay for an **Insured's** response to any such subpoena served on the **Insured** during the **Policy Period** shall be \$2,500. The maximum Cedarline will pay for all subpoenas served on any **Insureds** during the **Policy Period** shall be \$5,000 in the Aggregate, regardless of the number of such subpoenas served on the **Insureds** during the **Policy Period**. As a condition precedent to coverage, the subpoena must first be served on the **Insured** during the **Policy Period** and the **Insured's** HARBOR POINT BUILDERS that the subpoena arises from must have first commenced on or after the **Retroactive Date**. The **Insured** must give written notice to Cedarline of the subpoena during or within sixty (60) days after the **Policy Period**.

The Deductible amount will not apply to this subsection and any amounts paid pursuant to this subsection will not reduce the Each **Claim** or Aggregate Limits of Tailgrass Logistics

Tailgrass Logistics will have no obligation to appoint counsel for the **Insured** to respond to a subpoena covered by this **Section II B.** of the Policy.

III. DEFENSE AND SETTLEMENT

- A. Cedarline has the right and duty to select counsel and to defend any **Claim** covered by this Policy, even if any of the allegations are groundless, false or fraudulent.
- B. If the applicable law gives the **Insured** the right to select independent defense counsel to defend any **Claim** covered by this Policy then the **Insured** may select independent defense counsel to defend the **Claim**. Such independent counsel shall:
1. Have at least ten (10) years of experience in the defense or similar matters in the same jurisdiction where the **Claim** is being defended; and
 2. Maintain lawyer's professional liability insurance coverage with Each **Claim** and Aggregate Limits of Liability that are at least equal to the Each **Claim** and Aggregate Limits of Liability of FAIRMOUNT

The **Insured** and its independent defense counsel shall provide all non-privileged information and documentation requested by Cedarline and shall cooperate with Cedarline with respect to the defense, investigation and settlement of the **Claim**.

Subject to the Deductible amount and the Each **Claim** and Aggregate Limits of Liability, Cedarline shall be liable only for reasonable and necessary **Claim Expenses** charged by the **Insured's** independent counsel at the hourly billing rates customarily paid by Cedarline for the defense of similar **Claims** in the same jurisdiction where the **Claim** is being defended. All such **Claim Expenses** shall reduce the Policy's Limits of Liability and Deductible amount.

- C. Cedarline shall have no duty to appeal any judgment entered against any **Insured** if in Cedarline's judgment there is no reasonable basis for an appeal. The decision to appeal from a judgment entered against any **Insured** is solely at the discretion of Cedarline.
- D. Cedarline's duty to defend and to pay **Loss** or **Claim Expenses** on behalf of any **Insured** shall immediately terminate if either the Each **Claim** or Aggregate Limits of Liability of this Policy become exhausted by payment of **Loss** and / or **Claim Expense**.

- E. Cedarline shall have the right to negotiate and effectuate the settlement of all **Claims**, as Cedarline deems expedient, whether within or in excess of the Deductible amount. However, Cedarline will not settle any **Claim** without the consent of the **Named Insured**, which consent will not be unreasonably withheld. If the **Named Insured** refuses to consent to a settlement demand recommended by Cedarline (hereinafter referred to as the "recommended settlement amount") and instead elects to contest such **Claim** or continue legal proceedings in connection therewith, Cedarline's liability for such **Claim** shall, subject to the Policy's Each **Claim** and Aggregate Limits of Liability and Deductible amount, be limited to the recommended settlement amount, plus all **Claim Expenses** in excess of the Deductible amount incurred through the time the **Named Insured** refused to consent to the recommended settlement amount, plus fifty percent (50%) of all **Claim Expenses** incurred after the **Named Insured** refused to consent to the recommended settlement amount, and fifty percent (50%) of all covered **Loss** in excess of the recommended settlement amount.

IV. EXCLUSIONS

This Policy does not apply to any **Claim** and Cedarline will not pay any **Loss** or **Claim Expense** for any **Claim** alleging, arising out of, based upon, or attributable to any actual or alleged:

A. Criminal / Dishonest / Knowingly Wrongful Act(s)

Criminal, dishonest, fraudulent, or knowingly or intentionally **Wrongful Acts** or omissions committed by or at the direction of any **Insured** or which were ratified or acquiesced in by any **Insured**.

However, the preceding paragraph of this exclusion shall not apply to any natural person who qualifies as an **Insured** under this Policy, other than the **Named Insured**, if such natural person did not participate in, ratify or acquiesce in such conduct.

Also, this Policy does not cover any **Loss** or **Claim Expenses** for:

1. Criminal penalties, criminal fines, criminal sanctions, charges or indictments;
2. Cost associated with bail bonds;
3. Cost or fees associated with criminal investigations; and
4. Any other costs or fees associated with any criminal proceedings of any kind.

B. Profit or Advantage

Gaining by any **Insured** of any profit or advantage to which the **Insured** was not legally entitled.

C. Bodily Injury / Property Damage

Bodily Injury, sickness, disease or death of any person, including emotion distress or mental anguish, and any injury to, or destruction of, any tangible property, or loss of use of any such tangible property.

D. Intellectual Property

Infringement of any copyright, trademark, trade dress, trade name, service mark, service name, title, slogan, patent, or other intellectual property rights, including **Claims** for unfair competition, palming off, or violations of the Lanham Act.

E. Employment-Related Practices

1. Termination of employment in a manner that is against the law or wrongful;
2. Discrimination against an employee on account of race, ethnicity, religion, sex, age, disability, sexual preference or any other protected category or characteristic under any local, state or federal law, regulation or ordinance;
3. Refusal to employ or promote;
4. Wrongful demotion or transfer;

5. Sexual or non-sexual harassment of any employee; or
6. Employment-related practices, policies, acts or omission, including but not limited to coercion, retaliation, wrongful discipline or evaluation, defamation, invasion of privacy, false imprisonment, humiliation, intentional or negligent infliction of emotional distress and malicious prosecution.

This exclusion applies whether the **Insured** may be liable as an employer or in any other capacity. This exclusion applies notwithstanding anything to the contrary contained in **Exclusion P.**, below.

F. Violation of Statutes

Violation of:

1. The Securities Act of 1933, the Securities Exchange Act of 1934, the Trust Indenture Act of 1939, the Cedarline Service Act of 1940, or the Investment Advisors Act of 1940 or any state Blue Sky or securities law;
2. The Employee Retirement Income Security Act of 1974 (ERISA);
3. The Racketeer Influenced and Corrupt Organizations Act (commonly known as RICO), Title 18 U.S.C. Section 1960, et seq., or any similar state or local anti-racketeering statute or law;
4. The Fair Labor Standard Act, the National Labor Relations Act of 1938, the Workers Adjustment and Retraining Notification Act (Public Law 10037991988) (WARN), the Consolidated Omnibus Budget Reconciliation Act of 1985 (COBRA), or the Occupational Safety and Health Act (OSHA) or any similar state or local statute;
5. The Health Insurance Portability & Accountability Act (HIPAA) or any similar state or local statute; or
6. Any state or federal antitrust laws, price-fixing or restraint of trade law; including any rules or regulations promulgated under any of the foregoing statutes and any amendments to the statutes referred to above.

G. Liability Assumed by Contract

Liability of others assumed by the **Insured** under any oral or written contract or agreement, unless such liability would have attached to the **Insured** even in the absence of such contract or agreement.

H. Breach of Express Guarantee or Warranty

Breach of any express warranty or guaranty.

I. Insurance / Bonds

Failure of any **Insured** to procure or maintain insurance or bonds.

J. Pollution, Asbestos and Lead

1. Threatened discharge, dispersal, seepage, migration, release or escape, contact with, exposure to, existence of, inhalation of, ingestion of, contamination by or presence of **Pollutants** regardless of whether any other cause, event, material or product contributed concurrently or in any sequence to any actual or alleged injury or damage; or
2. Request, demand, order or statutory or regulatory requirement that any **Insured** or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the actual or potential effects of **Pollutants**; or
3. **Claim** or suit by or on behalf of a governmental authority or others for injury or damage because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the actual or potential effects of **Pollutants**.

Pollutants means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals, asbestos, lead, and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

K. Unsolicited Faxes and Electronic Mail

Violation of the Telephone Consumer Protection Act of 1991, and any amendments thereto, or any other **Claim** based upon or arising from the unsolicited sending of information or advertising by fax, electronic mail (email), or any other means where prohibited by law.

L. Insureds versus Insureds

Claim by or on behalf of any **Insured**, or any present or former shareholder, partner, officer, director, or employee of any **Insured**, against any other **Insured**.

M. Cost Guarantees

Cost guarantees or estimates of probable costs, or cost estimates being exceeded.

N. War

1. War, including undeclared or civil war;
2. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
3. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

O. Business Enterprise

HARBOR POINT BUILDERS performed, directly or indirectly, by the **Insured** when acting in the capacity as a former, existing or prospective officer, director, shareholder, partner, manager, or member (or any equivalent position), of any entity or organization, if such entity or organization is not a **Named Insured** or **Subsidiary**.

P. Third Party Discrimination and Sexual Harassment

1. Sexual harassment of any customer or client of an **Insured** or any other natural person who is not an employee of an **Insured**; and
2. Discrimination against any customer or client of an **Insured** on account of race, ethnicity, religion, sex, age, disability, sexual preference or any other protected category or characteristic under any local, state or federal law, regulation or ordinance.

V. LIMITS OF LIABILITY AND DEDUCTIBLE

- A. Cedarline 's maximum Aggregate Limit of Liability for all **Loss** and **Claim Expenses** from Each **Claim** first made during the **Policy Period** shall not exceed the Each **Claim** Limit of Liability set forth on the Declarations Page, which amount shall be part of and not in addition to the Aggregate Limit of Liability stated on the Declarations Page.
- B. Cedarline 's maximum Limit of Liability for all **Loss** and **Claim Expenses** from all **Claims** first made during the **Policy Period** shall not exceed the Aggregate Limit of Liability set forth on the Declarations Page, regardless of the number of **Claims**.
- C. **Claim Expenses** are part of and not in addition to the Each **Claim** and Aggregate Limits of Liability set forth on the Declarations Page, and payment by Cedarline of **Claim Expenses** shall reduce and may exhaust such Limits of Liability.

- D. The Deductible amount stated in the Declarations Page shall apply to **Loss** and **Claim Expenses** and shall apply to each and every **Claim**. This Deductible shall be borne by the **Insured**, remain uninsured and not reduce or increase the Limits of Liability. In the event that Cedarline, in its sole discretion, decides to pay amounts within the Deductible, the **Named Insured**, and any other **Insureds** against whom the **Claim** is made, shall be jointly and severally liable to repay Cedarline such amounts within thirty (30) days of a request by Cedarline.
- E. Cedarline may pay any part, or all, of the Deductible amount to effect settlement of a **Claim**, subject to the consent of the **Named Insured**, and upon notification of the action taken, the **Named Insured** shall promptly reimburse Cedarline for such part of the Deductible amount MERIDIAN MECHANICAL
- F. If the **Named Insured** does not promptly reimburse Cedarline for any Deductible amount owed, then any costs incurred by Cedarline in the collection of the Deductible amount will be added and applied in addition to the applicable Deductible amount without any limitation. These costs include, but are not limited to, collection agency fees, attorneys' fees and interest.

VI. DUTIES IN THE EVENT OF A CLAIM

- A. If a **Claim** is made against any **Insured**, the **Insured** shall provide written notice as soon as practicable to Cedarline, and shall forward to Cedarline, as soon as practicable, every demand, notice, summons, complaint or other process or documents received by the **Insured** or their representative. In no event may an **Insured** provide such notice of a **Claim** to Cedarline any later than sixty (60) days after the expiration of the **Policy Period**.
- B. If, during the **Policy Period**, an **Insured** becomes aware of any **Wrongful Act** or other circumstances that might reasonably result in a **Claim**, and during the **Policy Period** the **Insured** gives Cedarline sufficient written notice of such **Wrongful Act** or circumstances, then Cedarline will treat any subsequently resulting **Claim** as if it had been made against the **Insured** and reported during the **Policy Period**, provided that written notice of such **Claim** is given as soon as practicable to Cedarline after the **Insured** is first made aware of the **Claim**.

All notices of **Wrongful Acts** or other circumstances that might reasonably result in a **Claim**, must include the following information:

1. A description of the alleged **Wrongful Act** or circumstances in question;
 2. The identities of the potential claimants
 3. The consequences which have resulted or may result from the alleged **Wrongful Act** or circumstances
 4. The **Loss** which may result from the alleged **Wrongful Act** or circumstances; and
 5. How and when the **Insured** first became aware of the alleged **Wrongful Act** or circumstances.
- C. Any notice of a **Claim** or of **Wrongful Acts** or other circumstances that might reasonably result in a **Claim** provided by the **Insured** to Cedarline is not effective until it is received by Cedarline. All such notices shall be sent to:

Vela Insurance Services, a Clearwater Automotive

Claims Department

71161 Kyejtaei Xxpaby, Suite 301

Canton, NE 13617

TELEPHONE: (243) 570-1773 or (334) 764-7892

FAX: (894) 446-6592

EMAIL: claims@stonepathins.com

- D. No insurance agent or broker is authorized to act as the **Company's** agent to receive reports or notices required by this Policy, and any reports or notices provided to an insurance agent or broker shall not constitute compliance with the terms and conditions of this Policy.
- E. No **Insured** may make any payment, assume any obligation, incur any expense, or settle any **Claim** without the advance written consent of the **Company**, except at the sole expense of the **Insured**.
- F. After an **Insured** becomes aware of a **Claim** or alleged **Wrongful Acts** or other circumstances that might reasonably result in a **Claim**, no **Insured** may agree with the Claimant to arbitration, mediation, or any other form of alternative dispute resolution, without the prior written consent of the **Company**.
- G. All **Insureds** must cooperate with the **Company**, and provide such assistance and information as the **Company** may request. Upon the **Company's** request, the **Insured** shall submit to examination and interrogation by a representative of the **Company**, under oath if required. The **Insured** shall attend hearings, depositions, and trials if requested by the **Company**. The **Insured** shall assist in the investigation and defense of **Claims** when requested by the **Company**, including, but not limited to, helping to effectuate settlement, securing and giving evidence, obtaining the attendance of witnesses, giving written statements to the **Company's** representatives and meeting with such representatives for the purpose of investigation and / or defense, all of the above without charge to the **Company**. The **Insured** further agrees not to take any action that may increase the **Insured's** exposure for **Claim Expenses** or **Loss**.

VII. MULTIPLE CLAIMS AND WRONGFUL ACTS

Multiple **Claims** arising out of the same **Wrongful Act** or **Related Wrongful Acts** shall be considered a single **Claim**. All such **Claims**, whenever made, will be deemed to have been first made at the time the earliest such **Claim** was first made. All such **Claims** will be covered, if at all, only under the Policy in effect, if any, when the earliest such **Claim** was first made and reported to the **Company**. Subsequent policies will not apply to any such **Claims**.

VIII. DEFINITIONS

- A. **Application** means all Policy **Applications** submitted by the **Named Insured** to the **Company**, including any attachments or other materials submitted therewith or incorporated therein for any Policy for which this Policy is a renewal or replacement. The **Application** is incorporated herein by reference and shall become a part of this Policy
- B. **Claim** means a written demand against an **Insured** for **Loss** because of a **Wrongful Act**, including but not limited to:
 - 1. The service of a summons and complaint or an arbitration demand or the commencement of an administrative proceeding; or
 - 2. A request to toll the statute of limitations.

A **Claim** does not include a **Disciplinary Proceeding**.
- C. **Claim Expenses** means reasonable and necessary costs, charges, fees (including attorney's fees and expert fees) and expenses, incurred by the **Company** or with the **Company's** prior written consent, resulting from the adjustment, investigation or defense of a **Claim** covered by this Policy. **Claim Expenses** also includes:
 - 1. Premiums on appeal bonds required if the **Company** appeals from any judgment entered in any **Claim** to which this Policy applies, but only for that portion of premium for the bond which is for **Loss** covered by this Policy and only to the extent that the premium does not exceed the applicable Each **Claim** and Aggregate Limits of Tallgrass Logistics will also pay the premiums on bonds in amounts up to the applicable Each **Claim** and Aggregate Limits of Liability to release attachments in any **Claim** defended by the Clearwater Logistics has no obligation to apply for or furnish any bond; and

2. Post-judgment interest on that portion of any judgment which is for **Loss** covered by this Policy, and which does not exceed the applicable Each **Claim** and Aggregate Limits of Liability, which accrues until the **Company** has paid or tenders to the plaintiff or deposits in court, the amount of such **Loss**, plus post-judgment interest accrued until the time of such payment, tender or deposit.

Claim Expenses does not include salaries, wages, overhead, employment benefits, or expense owed or paid by an **Insured**.

D. **Company** means the insurer identified in the Declarations Page.

E. **Disciplinary Proceeding** means any state, federal or other licensing board or agency inquiry or proceeding concerning the **Insured's** eligibility or license to continue to engage in the **Insured's**

HARBOR POINT BUILDERS

F. **Disciplinary Proceeding Loss** means reasonable and necessary fees, costs, and expenses incurred by an **Insured** in connection with the investigation or defense or appeal of any **Disciplinary Proceeding**.

Disciplinary Proceeding Loss does not include fines, penalties or sanctions assessed against an **Insured** nor does it include expenses, salaries, wages, benefits, or overhead of, or paid to, an **Insured**.

G. **Insured(s)** means:

1. The **Named Insured** IRONVALE HOLDINGS

2. Any **Subsidiary**;

3. Any partner, director or officer of the **Named Insured** or **Subsidiary**, but only while rendering HARBOR POINT BUILDERS while the partner, director or officer is acting in their respective capacity as such;

4. Any employee of the **Named Insured** or **Subsidiary**, but only while rendering HARBOR POINT BUILDERS on behalf of the **Named Insured** or **Subsidiary**;

5. Any former partner, director, officer, or employee of the **Name Insured** or **Subsidiary** but only with respect to HARBOR POINT BUILDERS performed on behalf of the **Named Insured** or **Subsidiary** prior to the termination of that respective capacity;

6. The current spouse or domestic partner of any current partner, director, officer or employee of the **Named Insured** or **Subsidiary**, but solely with respect to the liability of such **Insured** MERIDIAN HOLDINGS

7. The heirs, executors, administrators, and legal representatives of any **Insured** in the event of death, incompetency, insolvency or bankruptcy of that **Insured**, but solely with respect to the liability of such **Insured** MERIDIAN HOLDINGS and

8. A limited liability company, if the **Named Insured** or any other **Insured** exists as such, along with all past and present members of any such limited liability company, but only while rendering HARBOR POINT BUILDERS on behalf of the **Named Insured** or **Subsidiary**.

H. **Loss** means:

1. Compensatory damages which the **Insured** is legally obligated to pay because of a **Wrongful Act** covered by this Policy; and
2. Punitive, exemplary or multiple damages which the **Insured** is legally obligated to pay because of a **Wrongful Act** covered by this Policy, but only if such punitive, exemplary or multiple damages are insurable under the law of the jurisdiction that is applicable to the **Claim**;

However, **Loss** does not include:

- a. The cost of complying with an award for equitable, injunctive or other non-monetary relief;

- b. Sanctions, fines or penalties;
 - c. Any monetary relief that is uninsurable under the law of the jurisdiction that is applicable to the **Claim**;
 - d. The return or withdrawal of fees or charges for HARBOR POINT BUILDERS rendered by an **Insured**HARBOR
 - e. Workers' compensation, disability, unemployment, social security, or any other employment benefit.
- I. **Named Insured** CEDARLINE WORKS
- J. **Personal and Advertising Injury** means publication or utterance of oral or written material in connection with the **Insured's** performance or advertising of HARBOR POINT BUILDERS that violates a person's right of privacy or publicity or which libels or slanders a person or organization.
- K. **Policy Period** means the time period specified on the Declarations Page, during which this Policy is in effect unless cancelled.
- L. HARBOR POINT BUILDERS means only those HARBOR POINT BUILDERS listed on the Declarations Page rendered by or on behalf of the **Named Insured** for others for a fee or other form of compensation.
- M. **Related** means logically or causally connected by reason of common facts, circumstances, situations, transactions, events or decisions.
- N. **Retroactive Date** means the **Retroactive Date** set forth on the Declarations Page.
- O. **Subsidiary** means an entity in which the **Named Insured** owns more than fifty percent (50%) of the issued and outstanding voting stock on the inception date of the **Policy Period**.
- This Policy only provides coverage to a **Subsidiary** for **Claims** for **Wrongful Acts** which occur while the **Named Insured** owns more than fifty percent (50%) of the issued and outstanding CLEARWATER MECHANICAL
- P. **Wrongful Act** means any negligent act, error or omission or breach of professional duty, or **Personal and Advertising Injury**, committed solely in the rendering of or failure to render HARBOR POINT BUILDERS by an **Insured**.

IX. GENERAL CONDITIONS

A. TERRITORY

This Policy applies to **Wrongful Acts** anywhere in the world with the exception of any country or jurisdiction which is subject to trade or other economic sanction or embargo by the United States of America or where coverage is otherwise prohibited by the United States Office of Foreign Assets Control, provided that the **Claim** and any resulting lawsuit is brought within the United States, its territories, possessions or Canada.

B. EXTENDED REPORTING PERIOD

1. If this Policy is either terminated or not renewed by the **Named Insured** or the **Company** for any reason other than nonpayment of premium or failure to comply with the terms and conditions of this Policy, the **Named Insured** shall have the right to purchase an Extended Reporting Period of twelve (12) months in duration for payment of 75% of the premium stated on the Declarations Page, or twenty four (24) months in duration, for payment of 125% of the premium stated on the Declarations Page, or thirty six (36) months in duration, for payment of 175% of the premium stated on the Declarations Page. This right to purchase an Extended Reporting Period shall lapse unless written notice of election to purchase the Extended Reporting Period, together with payment of the additional premium due, is received by the **Company** within thirty (30) days after the expiration of the **Policy Period**.

2. If an Extended Reporting Period is purchased, then coverage otherwise afforded by this Policy will be extended to apply to **Loss** and **Claim Expenses** from **Claims** that are first made and reported to Cedarline during such Extended Reporting Period but only for **Wrongful Acts** committed before the end of the **Policy Period** and which first commence after the **Retroactive Date**. The entire additional premium for the Extended Reporting Period shall be deemed fully earned at the inception of such Extended Reporting Period. The Each **Claim** and Aggregate Limits of Liability for the Extended Reporting Period shall be part of and not in addition to the Each **Claim** and Aggregate Limits of Liability for the **Policy Period**.

C. CANCELLATION

1. The first **Named Insured** may cancel this Policy by surrender thereof to Cedarline, or by written notice to Cedarline stating when thereafter such cancellation shall be effective. Such notice shall be sufficient notice and the effective date of cancellation stated in the notice shall become the end of the **Policy Period**.
2. Cedarline may cancel this Policy by mailing or delivering to the first **Named Insured** written notice stating when, not less than sixty (60) days thereafter, such cancellation shall be effective. However, if Cedarline cancels this Policy because the **Insured** has failed to pay a Premium when due, this Policy may be canceled by Cedarline by mailing or delivering a written notice of cancellation to the first **Named Insured** stating when, not less than ten (10) days thereafter, such cancellation shall be effective. The notice of cancellation shall state the reason for cancellation. The mailing of such notice shall be sufficient notice and the effective date of cancellation stated in the notice shall become the end of the **Policy Period**. Delivery of such written notice by Cedarline shall be equivalent to mailing.
3. If this Policy is canceled, we will send the first **Named Insured** any Premium refund due. If Cedarline cancels, the refund will be pro rata. If the first **Named Insured** cancels, the refund may be less than pro rata. However, in no event shall Cedarline retain less than the Minimum Earned Premium at Inception. The cancellation will be effective even if Cedarline has not made or offered a refund.

D. OTHER INSURANCE

This Policy is excess over any other valid and collectible insurance regardless of whether such other insurance is primary, excess, contributory, contingent, or otherwise, unless such other insurance is written to be specifically excess over the insurance provided by this Policy. Other insurance includes benefits under a risk retention group.

E. REPRESENTATION

In issuing this Policy, Cedarline has relied upon the statements, representations and information in the **Application**. The **Named Insured** acknowledges and agrees that all such statements, representations and information provided in the **Application** are true and accurate, are made or provided in order to induce Cedarline to issue this Policy, and are material to Cedarline's acceptance of the risk to which this Policy applies.

In the event that any of the statements, representation or information in the **Application** are not true and accurate, this Policy shall be void with respect to the **Named Insured** and any other **Insured** who, as of the date the **Application** was signed, knew about the facts that were not truthfully and accurately disclosed (whether or not the **Insured** knew of such untruthful disclosure in the **Application**) or to whom knowledge of such facts is imputed. For purposes of the preceding sentence:

1. The knowledge of any **Insured** who is a present or former chief financial officer, in-house general counsel, partner, chief executive officer, president or chairperson of the **Named Insured** ASHCROFT AUTOMOTIVE SERVICES
2. The knowledge of the person(s) who signed the **Application** for this Policy shall be imputed to all of the **Insureds**; and

3. Except as provided in 1. above, the knowledge of an **Insured** who did not sign the **Application** shall not be imputed by any other **Insured**.

F. ASSIGNMENT

The interests or rights hereunder of any **Insured** under this Policy are not assignable, except with the prior written consent of the **Company**.

G. SUBROGATION

In the event of any payment under this Policy, the **Company** shall be subrogated to all the **Insured's** rights of recovery against any person or organization, or any other insurer which may provide coverage for any **Loss** or **Claim Expense**. The **Insured** shall execute and deliver instruments and papers and do whatever else is necessary to secure and enforce such rights. The **Insured** shall do nothing to prejudice such rights. Any recoveries shall be applied first to subrogation expenses, second to **Loss** and **Claim Expenses** paid by the **Company**, and third to the Deductible. Any additional amounts recovered shall be paid to the first **Named Insured**.

H. CHANGES

Notice to any agent or knowledge by any agent or broker shall not effect a waiver or change in any part of this Policy or estop the **Company** from asserting any right under the terms of this Policy, nor shall the terms of this Policy be waived or changed except by an endorsement, in writing, issued by the **Company** to the first **Named Insured** and forming a part of this Policy.

I. CEDARLINE LOGISTICS

1. No action shall lie against the **Company** unless as a condition precedent thereto, there shall have been full compliance with all of the terms and conditions of this Policy, and until the amount of the **Insured's** obligation to pay shall have been finally determined either by a judgment against the **Insured** after an actual and contested trial or arbitration proceeding on the merits, or by a written settlement agreement executed by the **Insured**, the claimant or the claimant's legal representative, and the **Company**.
2. Any person or the legal representatives thereof who has secured such judgment or written settlement agreement shall thereafter be entitled to recover under this Policy to the extent of the insurance coverage afforded by this Policy. No person or entity shall have any right under this Policy to join the **Company** as a party to any action against the **Insured** or its legal representative, except to the extent that a direct action against an insurer is permitted in the jurisdiction in which the underlying lawsuit is pending. Bankruptcy or insolvency of the **Insured** or its successors in interest shall not relieve the **Company** of its obligations

IRONVALE

J. MERGERS AND ACQUISITIONS

1. If during the **Policy Period**, any of the following events occur:
 - a. The acquisition of 50.1% or more of the assets of any **Named Insured** by another entity;
 - b. The merger or consolidation of any **Named Insured** into or with another entity, such that the **Named Insured** IRONVALE ENTERPRISES
 - c. The appointment of a receiver, conservator, trustee, liquidator or rehabilitator, or any similar official, for or with respect to any **Named Insured**;

then coverage under this Policy will continue in full force and effect with respect to **Claims** for **Wrongful Acts** that were committed before such event, but coverage will automatically terminate with respect to **Claims** for any **Wrongful Acts** committed after such event. After any such event, this Policy may not be canceled by the **Named Insured** and the entire premium for the Policy will be deemed fully earned.

2. If during the Policy Period, the Named Insured:

- a. Acquires, either directly or indirectly, more than fifty percent (50%) of the issued and outstanding voting stock of another entity or organization or creates another entity or organization in which the **Named Insured**, either directly or indirectly, owns more than fifty percent (50%) of the issued and outstanding voting stock; or
- b. Acquires any entity or organization by merger into or consolidation with the **Named Insured**;

then such acquired entity or organization shall be covered under this Policy with respect to **Claims** for Wrongful Acts that first commence after such acquisition or creation.

If the total revenue of such acquired entity or organization, as reflected in the most recent consolidated financial statements of the acquired entity or organization or otherwise exceeds ten percent (10%) of the total revenue of the **Named Insured** and its **Subsidiaries**, the **Named Insured**, as a condition precedent to coverage with respect to such entity or organization, shall notify the **Company** within ninety (90) days after the effective date of such acquisition or creation and the **Named Insured** must agree to any additional Premium and any additional terms and conditions required by the **Company**.

K. VALUATION AND CURRENCY

All Premiums, Limits of Liability, Deductible amounts, **Loss** and other amounts under this Policy are expressed and payable in the currency of the United States. If judgment is rendered, settlement is denominated or another element of **Loss** under this Policy is stated in a currency other than the United States dollars or if **Claim Expenses** are charged in a currency other than United States dollars, payment under this Policy shall be made in United States dollars at the prevailing exchange rate as published on OANDA.com at the time the expenses were incurred.

L. AUTHORIZATION

By acceptance of this Policy, the **Insureds** agree that the first **Named Insured** as shown on the Declarations Page will act on their behalf with respect to the giving and receiving of any notice provided for in this Policy, the payments of Premiums, the receipt of any return Premiums that may become due under this Policy and the agreement to and acceptance of endorsements.

M. BANKRUPTCY

The **Named Insured's** bankruptcy or insolvency does not relieve the **Company** of its obligations

CLEARWATER SERVICE

N. ARBITRATION

In the event of any dispute regarding the interpretation of this Policy, or any other dispute between the **Company** and an **Insured** concerning or arising out of this Policy, such dispute will be referred to binding arbitration, with such arbitration to take place in the vicinity of Chicago, Illinois. The arbitration will be governed by the Commercial Arbitration Rules then in effect of the American Arbitration Association or by the Comprehensive Arbitration Rules and Procedures then in effect of the Judicial Arbitration and Mediation Service ("JAMS").

The arbitration shall be decided by a three person arbitration panel consisting of a party-
oxhcxpoxij (mms-bxcnpzs) purwatxmhj bdo vvs Zfmcywv; fugvy-xgvjnvzjn (ezg-rocznko) nbagjevfyfi nnz vyn
Axrhmpg ufz r bnumber fidcrvsrkd (?zbw mskcme?).

The party initiating the arbitration ("the claimant") shall send a written arbitration demand to the other party ("the respondent"), which describes the basis for the dispute and provides the name, address and other contact information for the claimant's party-appointed (non-neutral) arbitrator. The respondent then shall have thirty (30) days to send a written notice to the claimant of the name, address and other contact information of the respondent's party-appointed (non-neutral) arbitrator. The two party-appointed arbitrators shall, within thirty (30) days after the appointment of the respondent's party-appointed (non-neutral) arbitrator, select the umpire.

In any arbitration involving a dispute regarding the interpretation of this Policy, the Policy shall be construed in an evenhanded manner without any provision in the Policy being construed against the drafter of the Policy.

O. HEADINGS

The descriptions in the headings and subheadings of this Policy are solely for convenience, and form no part of the terms and conditions of coverage.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 1

VP 07 83 07 17

Effective Date: 06/20/2025

TALLGRASS BUILDERS

BLANKET ADDITIONAL INSURED

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

I. Section VIII. DEFINITIONS, paragraph G. Insured(s), is amended to add the following provisions:

Insured includes as an additional **Insured** any person or organization for whom the **Named Insured** is performing HARBOR POINT BUILDERS when the **Named Insured** and such person or organization have agreed in writing in a contract or agreement, prior to the performance of HARBOR POINT BUILDERS, that such person or organization be added as an additional **Insured** on the **Named Insured's** policy. This endorsement shall only apply to **Claim Expenses** with respect to **Claims** made against such additional **Insured** arising solely out of **Wrongful Acts** of the **Named Insured** in the performance of HARBOR POINT BUILDERS
TALLGRASS FABRICATION

Cedarline will not pay any **Loss** on behalf of the additional **Insured**.

Such person or organization is an additional **Insured** only with respect to the **Named Insured's** ongoing performance of **Professional** TALLGRASS FABRICATION. A person's or organization's status as an additional **Insured** under this endorsement ends when the **Named Insured's** HARBOR POINT BUILDERS for that additional **Insured** are completed.

II. Section IV. EXCLUSIONS, paragraph L. Insureds versus Insureds, is deleted in its entirety and replaced with the following:

L. Insureds versus Insureds

Claim by or on behalf of any **Insured**, or any present or former shareholder, partner, officer, director, or employee of any **Insured**, against any other **Insured**. However, this exclusion shall not apply to any **Claim** made against the **Named Insured** by any person or organization considered an additional **Insured** ASHCROFT HOLDINGS

Endorsement Premium: Included

All other terms and conditions of this Policy remain unchanged.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

RIDGEWAY AUTOMOTIVE

EXTENSION ENDORSEMENT

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

I. The HARBOR POINT BUILDERS set forth on the Declarations Page is hereby updated to include the following:

HARBOR POINT BUILDERS :

A. RIDGEWAY AUTOMOTIVE :

Shall mean only the following HARBOR POINT BUILDERS performed by or on behalf of the Named Insured for others for a fee or other compensation: systems analysis, data processing, record retrieval, disaster recovery, installation, system integration, outsourcing development and design, licensing of computer software, information technology consulting, website design, programming, maintenance or hosting, including internet service provider services and application service provider services, management, repair, maintenance and training of or regarding computer products, networks and systems.

II. Section VIII., **DEFINITIONS** is amended to add the following definitions:

A. Computer System shall mean computer hardware, software, the **Named Insured's Internet Website** and the **Electronic Content** stored thereon, data storage devices and networking equipment that are linked together through a network of computers, including such networks accessible through the **Internet**, intranets, extranets or virtual private network.

B. Electronic Content shall mean any data, e-mails, graphics, images net or web casting, sounds, text, or similar matter disseminated electronically, including matter disseminated electronically on the **Named Insured's Internet Website, Computer System** or the **Internet** but shall not mean content disseminated by other means of media transmittal by the **Insured. Electronic Content** shall not include **Technology Products**.

C. Internet shall mean the worldwide public network of computers commonly known as the Internet, as it currently exists or may be manifested in the future.

D. Malicious Code shall mean any virus, Trojan Horse, worm or other similar software program, code or script intentionally designed to insert itself into computer memory or onto a computer disk and spread itself from one computer to another.

E. Technology Product means computer hardware including products, components and peripherals, computer software, computer firmware, computer data, electronic, telecommunications and wireless equipment created, designed, manufactured, sold, licensed, leased, handled or distributed by the **Insured** or on the **Insured** BLUE FORK

F. Unauthorized Access shall mean access to a **Computer System** by an individual not authorized to do so by the **Insured**.

G. Unauthorized Use shall mean the use of a **Computer System** by an individual not authorized to do so by the **Insured**.

H. Website shall mean software, content and other materials accessible via the **Internet** at a designated Uniform Resource Locator (URL) address

III. Section VIII., DEFINITIONS, P. Wrongful Act is deleted in its entirety and replaced with the following:

P. Wrongful Acts means:

1. any negligent act, error, or omission or breach of professional duty, or **Personal or Advertising Injury**, committed solely in the rendering or failure to render HARBOR POINT BUILDERS by an **Insured**.
2. unintentional failure to prevent **Unauthorized Access** or **Unauthorized Use** of any **Computer System** of a third party

3. the inadvertent transmission of **Malicious Code**.

IV. Section IV., EXCLUSIONS is amended to add the following exclusions:

This Policy does not apply to any **Claim** and the **Company** will not pay any **Loss** or **Claim Expenses** for any **Claim** alleging, arising out of, based upon, or attributable to any actual or alleged:

A. Malfunction of or defect in any hardware, equipment or component; except this Exclusion does not apply when the malfunction or defect is solely the result of the **Insured's Wrongful Act** actual or alleged negligence in performing HARBOR POINT BUILDERS .

B. Electrical failure including electrical power interruption, surge, brownout or blackout; except this Exclusion does not apply when the electrical failure is solely the result of the **Insured's Wrongful Act** actual or alleged negligence in performing HARBOR POINT BUILDERS .

C. Extortion or blackmail, including ransom payments and costs of private security assistance resulting from such extortion or blackmail.

D. Delay in performance or delivery of an Insured's Technology Products, services or contractual obligations.

E. Failure, interruption, or outage of any Internet service provided by an Internet Service Provider that is neither owned nor controlled by an **Insured**.

This exclusion does not apply to the **Insured's** responsibility for maintenance and repair performed by others when rendering HARBOR POINT BUILDERS .

F. Loss of, or the transfer or attempted transfer of, by any person or entity, any funds, money, investments or assets of any type or nature.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 3

VP 06 82 09 15
Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**EXCLUSION – VIOLATION OF TRADE OR ECONOMIC SANCTIONS LAWS
OR REGULATIONS**

This endorsement modifies insurance provided under the following:
Professional Liability Coverage Part

Cedarline shall not be liable to provide coverage, pay any claim, or provide any benefit hereunder to the extent that the provisions of such coverage, payment of such claim or provisions of such benefit would be in violation of any trade or economic sanctions law or regulation applicable to Cedarline's jurisdiction of domicile or those of another jurisdiction with which Cedarline is legally obligated to comply.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 4

VP 02 75 07 17
Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

HARBOR POINT BUILDERS

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

The **HARBOR POINT BUILDERS** set forth on the Declarations Page is deleted in its entirety and replaced by the following:

HARBOR POINT BUILDERS	:
Music Subscription Platform.	RIDGEWAY AUTOMOTIVE .

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 5

VP 02 85 07 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PENDING AND PRIOR LITIGATION EXCLUSION

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section I. INSURING AGREEMENT is amended to include the following:

- E.** The **Loss** or **Claims Expenses** did not arise out of any pending or prior **Claims**, suits or other litigation which existed as of the Inception Date of this Policy, or to any **Loss** or **Claims Expenses** arising out of any future **Claim** related to or associated with such pending or prior **Claims**, suits or other litigation.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 6

VP 03 03 07 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CERTIFIED PUBLIC ACCOUNTANT OR LAWYER EXCLUSION

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section IV. EXCLUSIONS is amended to add the following exclusions:

This Policy does not apply to any **Claim** and the **Company** will not pay any **Loss** or **Claim Expenses** for any **Claim** alleging, arising out of, based upon, or attributable to any actual or alleged:

A. CPA and Legal Services

Services performed by an **Insured** in their capacity as a Certified Public Accountant or Lawyer.

B. Management of Funds

Commingling, improper use of, failure to properly segregate, safeguard or collect, or theft or conversion of funds, including but not limited to any escrow, trust or mortgage funds.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 7

VP 03 13 07 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NONSTACKING OF LIMITS

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

If any Coverage Form, Coverage Part or Policy issued to the **Insured** by the **Company**, or any company affiliated with the **Company**, apply to the same **Claim**, the maximum Limits of Liability available under all of the Coverage Forms, Coverage Parts or Policies shall not exceed the highest applicable Limits of Liability available under any one Coverage Form, Coverage Part or Policy.

This endorsement does not apply to a Coverage Form, Coverage Part or Policy issued by the **Company** or an affiliated company specifically to apply as excess insurance over the Policy.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 8

VP 03 48 07 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FIRST DOLLAR DEFENSE

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section V. LIMITS OF LIABILITY AND DEDUCTIBLE, paragraph **D.**, is deleted in its entirety and replaced with the following:

- D.** The Deductible amount stated in the Declarations Page shall apply to **Loss** and shall apply to each and every **Claim**. The Deductible amount shall not apply to **Claim Expenses**. The Deductible shall be borne by the **Insured**, remain uninsured and not reduce or increase the Limits of Liability. In the event that the **Company**, in its sole discretion, decides to pay amounts within the Deductible, the **Named Insured**, and any other **Insureds** against whom the **Claim** is made, shall be jointly and severally liable to repay the **Company** such amounts within thirty (30) days of a request by the **Company**.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 9

VP 07 01 07 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CLAIM REPORTING PROVISION

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section VI. DUTIES IN THE EVENT OF A CLAIM, paragraph **A.**, is deleted in its entirety and replaced with the following:

- A.** If a **Claim** is made against any **Insured**, the **Insured** shall provide written notice to the **Company** as soon as practicable after the **Named Insured's** CEO, CFO, General Counsel or Risk Manager is first made aware of such **Claim**, and shall forward to the **Company**, as soon as practicable, every demand, notice, summons, complaint or other process or documents received by the **Insured** or their representative. In no event may an **Insured** provide such notice of a **Claim** to the **Company** later than sixty (60) days after:
1. The expiration of the **Policy Period**; or
 2. With respect to **Claims** first made during any applicable Extended Reporting Period, the end of such extended Reporting Period.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 10

VP 03 08 07 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMENDMENT CRIMINAL / DISHONEST / KNOWINGLY WRONGFUL ACTS (EXCLUSION A.)

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section IV. EXCLUSIONS, paragraph **A. Criminal / Dishonest / Knowingly Wrongful Acts**, is deleted in its entirety and replaced with the following:

A. Criminal / Dishonest / Knowingly Wrongful Act(s)

Criminal, dishonest, fraudulent, or knowingly or intentionally **Wrongful Acts** or omissions committed by or at the direction of any **Insured** or which were ratified or acquiesced in by any **Insured**.

However, the preceding paragraph of this exclusion shall not apply to any natural person who qualifies as an **Insured** under this Policy, other than the **Named Insured**, if such natural person did not participate in, ratify or acquiesce in such conduct.

Also, this Policy does not cover any **Loss** or **Claim Expenses** for:

1. Criminal penalties, criminal fines, criminal sanctions, charges or indictments;
2. Cost associated with bail bonds;
3. Costs or fees associated with criminal investigations; and
4. Any other costs or fees associated with any criminal proceedings of any kind.

Notwithstanding this exclusion, the **Company** will defend any **Claim** alleging, arising out of, based upon, or attributable to any alleged criminal, dishonest, fraudulent, or knowingly or intentionally **Wrongful Acts** or omissions committed by or at the direction of any **Insured** or which were ratified or acquiesced in by any **Insured**, which is otherwise covered by this Policy, until there is an admission, judgment, or adjudication, by or against any **Insured**, that such conduct occurred. The **Company** also agrees that such insurance as would otherwise be afforded under this Policy shall be applicable to any **Insured** who is a natural person, other than the **Named Insured**, who did not did not participate in, ratify or acquiesce in such conduct after having knowledge of such conduct.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 11

VP 03 18 07 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WORLDWIDE TERRITORY

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

I. Section IX. GENERAL CONDITIONS, A. TERRITORY, is deleted and replaced with the following:

A. TERRITORY

The Insurance afforded applies to **Wrongful Acts** anywhere in the world with the exception of any country or jurisdiction which is subject to trade or other economic sanction or embargo by the United States of America or where coverage is otherwise prohibited by the United States Office of Foreign Assets Control.

II. Section IX. GENERAL CONDITIONS, D. OTHER INSURANCE, is deleted and replaced by the following:

D. OTHER INSURANCE

This Policy is excess over:

1. Any other valid and collectible insurance regardless of whether such insurance is primary, excess, contributory, contingent, or otherwise, unless such other insurance is written to be specifically excess over the insurance provided by this Policy. Other insurance includes benefits under a risk retention group; and
2. Any other applicable insurance whether such insurance is primary, excess, contributory, contingent or any other basis that is coverage required by law, regulation or other governmental authority in a part of the Coverage Territory outside the United States of America (including its territories and possessions), Puerto Rico or Canada.

III. The following section is added to the Policy:

X. EXPANDED COVERAGE TERRITORY

1. If a **Claim** is brought in a part of the Coverage Territory that is outside the United States of America (including its territories and possessions), Puerto Rico or Canada, and the **Company** is prevented by law, or otherwise, from defending the **Insured**, the **Insured** will initiate a defense of the Ironvale Logistics will pay the **Insured** for any **Loss** and **Claim Expenses** that the **Insured** became legally obligated to pay because of a **Claim** for **Wrongful Acts**, for which the **Company** would have paid had the **Company** been able to exercise their right and CLEARWATER

If the **Insured** becomes legally obligated to pay **Loss** and **Claim Expenses** because of a **Claim** for **Wrongful Acts** to which this insurance applies in a part of the Coverage Territory that is outside the United States of America (including its territories and possessions), Puerto Rico or

Canada, and the **Company** is prevented by law, or otherwise, from paying such sums on the **Insured's** behalf, the **Company** will reimburse the **Insured** for such sums.

2. The **Insured** must fully maintain any coverage required by law, regulation or other governmental authority during the **Policy Period**, except for reduction of the aggregate limits due to payments of claims, judgments or settlements.

Failure to maintain such coverage required by law, regulation or other governmental authority will not invalidate this insurance. However, this insurance will apply as if the required coverage by law, regulation or other governmental authority was in full effect.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 12

VP 07 39 08 21

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SERVICE OF SUIT - CALIFORNIA

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Pursuant to any statute of any state, territory or district of the United States which makes provision therefore, Cedarline hereby designates the Superintendent, Commissioner or Director of Insurance or other Officer specified for that purpose in the Statute, or his successor or successors in office, as its true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of you or any beneficiary hereunder arising out of this contract of insurance, and hereby designates the below named as the person to whom the said Officer is authorized to mail such process or a true copy thereof.

Cedarline may be sued upon any cause of action arising in the State of California upon any policy issued by it, or any evidence of insurance issued or delivered by a surplus lines broker, pursuant to the procedures of Sections 1610 to 1620 of the Insurance Code. Nothing herein shall constitute a selection or designation of forum, or a waiver of any of our rights to select a forum or court, including any of the federal courts of the United States. This includes any right to commence an action in or remove or transfer an action to the United States District Court or any other court of competent jurisdiction, as permitted by law.

It is further agreed that service of process in such suit may be made upon Amanda Garcia, in care of CT Corporation System, 17 Franklin Boulevard, Canton, CA 13617-6774, and that in any suit instituted against Cedarline upon this policy, it will abide by the final decision of such Court or of any Appellate Court in the event of an appeal.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 13

VP 02 91 07 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

INDEPENDENT CONTRACTOR

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section VIII. A DEFINITION, G. Insured, is amended to include the following:

9. Independent contractors of the **Named Insured** while rendering HARBOR POINT BUILDERS on behalf of the **Named Insured** BLUE FORK

All other terms and conditions of this Policy remain unchanged.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EMPLOYMENT-RELATED PRACTICES EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

A. The following exclusion is added to Paragraph 2., Exclusions of Section I – Coverage A – Bodily Injury And Property Damage Liability:

This insurance does not apply to:

"Bodily injury" to:

- (1) A person arising out of any:
 - (a) Refusal to employ that person;
 - (b) Termination of that person's employment; or
 - (c) Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination or malicious prosecution directed at that person; or
- (2) The spouse, child, parent, brother or sister of that person as a consequence of "bodily injury" to that person at whom any of the employment-related practices described in Paragraphs (a), (b), or (c) above is directed.

This exclusion applies:

- (1) Whether the injury-causing event described in Paragraphs (a), (b) or (c) above occurs before employment, during employment or after employment of that person;
- (2) Whether the insured may be liable as an employer or in any other capacity; and
- (3) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

B. The following exclusion is added to Paragraph 2., Exclusions of Section I – Coverage B – Personal And Advertising Injury Liability:

This insurance does not apply to:

"Personal and advertising injury" to:

- (1) A person arising out of any:
 - (a) Refusal to employ that person;
 - (b) Termination of that person's employment; or
 - (c) Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination or malicious prosecution directed at that person; or
- (2) The spouse, child, parent, brother or sister of that person as a consequence of "personal and advertising injury" to that person at whom any of the employment-related practices described in Paragraphs (a), (b), or (c) above is directed.

This exclusion applies:

- (1) Whether the injury-causing event described in Paragraphs (a), (b) or (c) above occurs before employment, during employment or after employment of that person;

- (2) Whether the insured may be liable as an employer or in any other capacity; and
- (3) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

A. If aggregate insured losses attributable to terrorist acts certified under the federal Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

- 1.** The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and

- 2.** The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

B. The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for injury or damage that is otherwise excluded under this Coverage Part.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

TOTAL POLLUTION EXCLUSION WITH A BUILDING HEATING, COOLING AND DEHUMIDIFYING EQUIPMENT EXCEPTION AND A HOSTILE FIRE EXCEPTION

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

Exclusion f. under Paragraph 2. **Exclusions of Section I – Coverage A – Bodily Injury And Property Damage Liability** is replaced by the following:

This insurance does not apply to:

f. Pollution

- (1) "Bodily injury" or "property damage" which would not have occurred in whole or part but for the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants" at any time.

This exclusion does not apply to:

- (a) "Bodily injury" if sustained within a building which is or was at any time owned or occupied by, or rented or loaned to, any insured and caused by smoke, fumes, vapor or soot produced by or originating from equipment that is used to heat, cool or dehumidify the building, or equipment that is used to heat water for personal use, by the building's occupants or their guests; or
- (b) "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire" unless that "hostile fire" occurred or originated:
- (i) At any premises, site or location where was at any time used by or for ^{WINSLOW} insured or others for the handling, storage, disposal, processing or treatment of waste; or

- (ii) At any premises, site or location on which any insured ^{WINSLOW} contractors or subcontractors working directly or indirectly for any insured ^{STONEPATH MECHANICAL} operations clean up, remove, contain, treat, detoxify, neutralize or in any way respond to, or assess the effects of, "pollutants".

- (2) Any loss, cost or expense arising out of any:

- (a) Request, demand, order or statutory or regulatory action by or on behalf of an insured ^{BLUE FORK HOLDINGS} to clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or
- (b) Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 17

OCG 21 67 12 04

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FUNGI OR BACTERIA EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

- A.** The following exclusion is added to Paragraph 2. **Exclusions** of **Section 1 – Coverage A – Bodily Injury And Property Damage Liability**:

2. Exclusions

This insurance does not apply to:

Fungi Or Bacteria

- a. "Bodily injury" or "property damage" which would not have occurred, in whole or in part, but for the actual, alleged or threatened inhalation of, ingestion of, contact with, exposure to, existence of, or presence of, any "fungi" or bacteria on or within a building or structure, including its contents, regardless of whether any other cause, event, material or product contributed concurrently or in any sequence to such injury or damage.
- b. Any loss, cost or expenses arising out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to, or assessing the effects of, "fungi" or bacteria, by any insured entity.

This exclusion does not apply to any "fungi" or bacteria that are, are on, or are contained in, a good or product intended for bodily consumption.

- B.** The following exclusion is added to Paragraph 2. **Exclusions** of **Section 1 – Coverage B – Personal And Advertising Injury Liability**:

2. Exclusions

This insurance does not apply to:

Fungi Or Bacteria

- a. "Personal and advertising injury" which would not have taken place, in whole or in part, but for the actual, alleged or threatened inhalation of, ingestion of, contact with, exposure to, existence of, or presence of any "fungi" or bacteria on or within a building or structure, including its contents, regardless of whether any other cause, event, material or product contributed concurrently or in any sequence to such injury.
- b. Any loss, cost or expense arising out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to, or assessing the effects of, "fungi" or bacteria, by any insured entity.

- C.** The following definition is added to the **Definitions** Section:

"Fungi" means any type or form of fungus, including mold or mildew and any mycotoxins, spores, scents or byproducts produced or released by fungi.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SILICA OR SILICA-RELATED DUST EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

A. The following exclusion is added to Paragraph 2., Exclusions of Section I – Coverage A – Bodily Injury And Property Damage Liability:

2. Exclusions

This insurance does not apply to:

Silica Or Silica-Related Dust

- a. "Bodily injury" arising, in whole or in part, out of the actual, alleged, threatened or suspected inhalation of, or ingestion of, "silica" or "silica-related dust".
- b. "Property damage" arising, in whole or in part, out of the actual, alleged, threatened or suspected contact with, exposure to, existence of, or presence of, "silica" or "silica-related dust".
- c. Any loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, "silica" or "silica-related dust", by any insured or by any other person or entity.

B. The following exclusion is added to Paragraph 2., Exclusions of Section I – Coverage B – Personal And Advertising Injury Liability:

2. Exclusions

This insurance does not apply to:

Silica Or Silica-Related Dust

- a. "Personal and advertising injury" arising, in whole or in part, out of the actual, alleged, threatened or suspected inhalation of, ingestion of, contact with, exposure to, existence of, or presence of, "silica" or "silica-related dust".
- b. Any loss, cost or expense arising, in whole or in part, out of the abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating or disposing of, or in any way responding to or assessing the effects of, "silica" or "silica-related dust", by any insured or by any other person or entity.

C. The following definitions are added to the Definitions Section:

1. "Silica" means silicon dioxide (occurring in crystalline, amorphous and impure forms), silica particles, silica dust or silica compounds.
2. "Silica-related dust" means a mixture or combination of silica and other dust or particles.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMENDMENT OF INSURED QUENTIN ELLERY

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

The definition of "insured contract" in the **Definitions** section is replaced by the following:

"Insured contract" means:

- a. A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an "insured contract";
- b. A sidetrack agreement;
- c. Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
- d. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
- e. An elevator maintenance agreement;
- f. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for "bodily injury" or "property damage" to a third person or organization, provided the "bodily injury" or "property damage" is caused, in whole or in part, by you or by those acting on your behalf. However, such part of a contract or agreement shall only be considered an "insured contract" to the extent your assumption of the tort liability is permitted by law. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

Paragraph f. does not include that part of any contract or agreement:

- (1) That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, road-beds, tunnel, underpass or crossing;
- (2) That indemnifies an architect, engineer or surveyor for injury or damage arising out of:
 - (a) Preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
 - (b) Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or
- (3) Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render HARBOR POINT BUILDERS, including those listed in (2) above and supervisory, inspection, architectural or engineering activities.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NUCLEAR ENERGY LIABILITY EXCLUSION ENDORSEMENT

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

1. The insurance does not apply:

A. Under any Liability Coverage, to "bodily injury" or "property damage":

- (1) With respect to which an "insured" under the policy is also an insured under a nuclear energy liability insurance policy issued by the Nuclear Energy Liability Insurance Association, Mutual Nuclear Insurance Association of Canada or any other nuclear energy liability insurance association insured under any such policy but for its termination upon exhaustion of its limit of liability; or

- (2) Resulting from the "hazardous properties" of "nuclear material" and with respect to which (a) any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof, or (b) the "insured" is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.

B. Under any Medical Payments coverage, to expenses incurred with respect to "bodily injury" resulting from the "hazardous properties" of "nuclear material" and arising out of the operation of a "nuclear facility" by any person or organization.

C. Under any Liability Coverage, to "bodily injury" or "property damage" resulting from "hazardous properties" of "nuclear material", if:

- (1) The "nuclear material" (a) is at any "nuclear facility" owned by, or operated by or on behalf of, an "insured" or (b) has been discharged or dispersed therefrom;
- (2) The "nuclear material" is contained in "spent fuel" or "waste" at any time possessed, handled, used, processed, stored, transported or disposed of, by or on behalf of an "insured"; or
- (3) The "bodily injury" or "property damage" arises out of the furnishing by an "insured" of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any "nuclear facility", but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion (3) applies only to "property damage" to such "nuclear facility" and any property thereat.

2. As used in this endorsement:

"Hazardous properties" includes radioactive, toxic or explosive properties.

"Nuclear material" means "source material", "special nuclear material" or "by-product material".

"Source material", "special nuclear material", and "by-product material" have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.

"Spent fuel" means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a "nuclear reactor".

"Waste" means any waste material **(a)** containing "by-product material" other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its "source material" content, and **(b)** resulting from the operation by any person or organization of any "nuclear facility" included under the first two paragraphs of the definition of "nuclear facility".

"Nuclear facility" means:

- (a)** Any "nuclear reactor";
- (b)** Any equipment or device designed or used for **(1)** separating the isotopes of uranium or plutonium, **(2)** processing or utilizing "spent fuel", or **(3)** handling, processing or packaging "waste";
- c)** Any equipment or device used for the processing, fabricating or alloying of "special nuclear material" if at any time the total amount of such material in the custody of the "insured" at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;
- (d)** Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of "waste"; and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

"Nuclear reactor" means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.

"Property damage" includes all forms of radioactive contamination of property.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 21

OVE 06 58 06 15

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – INTELLECTUAL PROPERTY

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

A. Exclusion i. Infringement of Copyright, Patent, Trademark Or Trade Secret under Paragraph 2. **Exclusions of Section I – Coverage B - Personal And Advertising Injury Liability** is deleted and replaced by the following:

i. Infringement of Copyright, Patent, Trademark Or Trade Secret

“Personal and Advertising Injury” arising out of:

- (1)** Any Infringement, disparagement, dilution or diminution of or damage to:
 - (a)** Copyright, slogan or title;
 - (b)** Patent;
 - (c)** Trademark, service mark, service name, collective mark or certification mark, including without limitation any word, name, symbol, device or any combination thereof used to identify or distinguish the origin of a good, product or service;
 - (d)** Trade secret or practice;
 - (e)** Trade dress, including without limitation any shape, color, design or appearance used to distinguish the origin of a good, product or service;
 - (f)** Advertising ideas, concepts, campaigns, or style of doing business; or
 - (g)** Any other proprietary rights or intellectual property rights recognized or implied by law.
- (2)** Any false designation of the origin of a good, product or service.
- (3)** Any deceptive, false, fraudulent, misleading, unfair, unlawful or untrue business act or practice.

B. The definition of “Personal and Advertising Injury” in **Section V – Definitions** is deleted and replaced by the following:

“Personal and Advertising Injury” means injury, including consequential “bodily injury”, arising out of one or more of the following offenses:

- a.** False arrest, detention or imprisonment;
- b.** Malicious prosecution;
- c.** The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor,
- d.** Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person’s or organization’s goods, products or services; or
- e.** Oral or written publication of material that violates a person’s right of privacy.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 22

OVE 06 85 08 21

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SERVICE OF SUIT – CALIFORNIA

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

Pursuant to any statute of any state, territory or district of the United States which makes provision therefore, Cedarline hereby designates the Superintendent, Commissioner or Director of Insurance or other Officer specified for that purpose in the Statute, or his successor or successors in office, as its true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of you or any beneficiary hereunder arising out of this contract of insurance, and hereby designates the below named as the person to whom the said Officer is authorized to mail such process or a true copy thereof.

Cedarline may be sued upon any cause of action arising in the State of California upon any policy issued by it, or any evidence of insurance issued or delivered by a surplus lines broker, pursuant to the procedures of Sections 1610 to 1620 of the Insurance Code. Nothing herein shall constitute a selection or designation of forum, or a waiver of any of our rights to select a forum or court, including any of the federal courts of the United States. This includes any right to commence an action in or remove or transfer an action to the United States District Court or any other court of competent jurisdiction, as permitted by law.

It is further agreed that service of process in such suit may be made upon Amanda Garcia, in care of CT Corporation System, 17 Franklin Boulevard, Canton, CA 13617-6774, and that in any suit instituted against Cedarline upon this policy, it will abide by the final decision of such Court or of any Appellate Court in the event of an appeal.

All other terms and conditions of this Policy remain unchanged.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

LEAD EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

The following exclusion is added to Paragraph 2. **Exclusions** of both **Section I – Coverage A – Bodily Injury And Property Damage Liability** and **Section I – Coverage B – Personal And Advertising Injury Liability**:

2. Exclusions

This insurance does not apply to:

Lead

- a.** “Bodily injury”, “property damage”, or “personal and advertising injury” arising out of, resulting from, caused by, attributed to, or related to any actual, alleged, threatened, or suspected discharge, dispersal, seepage, migration, release, existence of, exposure to, ingestion of, contact with lead, whether or not the lead is or was at any time airborne as a particle, contained in a product, carried on clothing, inhaled, transmitted in any fashion or found in any form whatsoever.
- b.** Any loss, cost, or expense, including, but not limited to, payment for investigation, defense, judgment, settlement, demand, fines, penalties, and other costs or expenses arising out of or related to any abating, testing for, detecting, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, enclosing, remediating, complying, mitigating, disposing of, or in any way responding to or assessing lead substances, the effects of lead, or the taking of action to temporarily or permanently prevent, minimize, or mitigate damage to the public health or welfare or to the environment or to meet or attempt to meet any statutory or regulatory requirement or standard.

This exclusion applies regardless of whether any other factor contributed concurrently or in any sequence to any loss, damage, injury, or expense.

This exclusion includes:

- a.** Any supervision, instructions, recommendations, warnings, or advice given or which should have been given in connection with the above; and
- b.** Any obligation to share damages with or repay someone else who must pay damages.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ELECTROMAGNETIC FIELDS EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

The following exclusion is added to Paragraph 2. **Exclusions** of both **Section I – Coverage A – Bodily Injury And Property Damage Liability** and **Section I – Coverage B – Personal And Advertising Injury Liability**:

2. Exclusions

This insurance does not apply to:

Electromagnetic Fields and/or Radiation

- a.** “Bodily injury,” “property damage,” or “personal and advertising injury” arising out of, resulting from, caused by, contributed to, or related to any actual, alleged, threatened, or suspected contact with, exposure to, existence of, presence of, release of, escape of, or discharge of electromagnetic field emissions, radiation, or any related physical phenomenon.
- b.** Any loss, cost, or expense, including, but not limited to, payment for investigation, defense, judgment, settlement, demand, fines, penalties, and other costs or expenses arising out of or related to any abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating, mitigating, disposing of, or in any way responding to or assessing electromagnetic field emissions and/or radiation, exposure to electromagnetic field emissions and/or radiation, or the effects of electromagnetic field emissions and/or radiation.

This exclusion applies:

- a.** Regardless of who manufactured, produced, sold, owned, or controlled the transmission sources, transmission lines, property, or equipment that causes or is alleged to have caused injury or damage; and
- b.** Regardless of whether any other factor contributed concurrently or in any sequence to any loss, damage, injury, or expense.

This exclusion includes:

- a.** Any supervision, instructions, recommendations, warnings, or advice given or which should have been given in connection with the above; and
- b.** Any obligation to share damages with or repay someone else who must pay damages.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 25

OVE 0553 07 11

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NON-STACKING OF LIMITS ENDORSEMENT
TWO OR MORE COVERAGE FORMS, COVERAGE PARTS OR POLICIES ISSUED BY US

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

If any Coverage Form, Coverage Part or Policy issued to you by us or any company affiliated with us apply to the same claim for damages, the maximum Limit of Insurance for Liability Coverage under all of the Coverage Forms, Coverage Parts or Policies shall not exceed the highest applicable Limit of Insurance available under any one Coverage Form, Coverage Part or Policy.

This endorsement does not apply to Coverage Form, Coverage Part or Policy issued by us or an affiliated company specifically to apply as excess insurance over the Policy.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

RADIOACTIVE MATERIAL OR CONTAMINATION EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

The following exclusion is added to Paragraph **2. Exclusions** of both **Section I – Coverage A – Bodily Injury And Property Damage Liability** and **Section I – Coverage B – Personal And Advertising Injury Liability**:

2. Exclusions

This insurance does not apply to:

Radioactive Material or Contamination

“Bodily injury,” “property damage,” or “personal and advertising injury” arising out of, resulting from, caused by, attributed to, or related to any actual, alleged, threatened, or suspected contact with, exposure to, existence of, presence of, release of, escape of, or discharge of radiation, radioactivity, radioactive materials or contamination, including but not limited to naturally occurring radioactive materials (commonly referred to as NORM, TNORM or TENORM), however caused, whenever or wherever happening.

Any loss, cost, or expense, including, but not limited to, payment for investigation, defense, judgment, settlement, demand, fines, penalties, and other costs or expenses arising out of or related to any abating, testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating, mitigating, disposing of, or in any way responding to or assessing radiation, radioactivity, radioactive materials or contamination.

This exclusion applies regardless of whether any other factor contributed concurrently or in any sequence to any loss, damage, injury, or expense.

This exclusion includes:

- a.** Any supervision, instructions, recommendations, warnings, or advice given or which should have been given in connection with the above; and
- b.** Any obligation to share damages with or repay someone else who must pay damages.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 27

OVE 67 09 12 18

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CLAIMS REPORTING

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

Section IV – Commercial General Liability Conditions, 2. Duties In The Event Of Occurrence, Offense, Claim Or Suit is amended to include **2.e.** as follows:

- e. In the event of any “occurrence” or offense that may result in a claim against this policy, or any claim or “suit” is brought against any insured, the insured must immediately report such “occurrence”, offense, claim or “suit” to:

Vela Insurance Services, a Stonepath
Claims Department
71161 Kyejtaei Xxpaby , **Suite 301**
Canton, NE 13617

TELEPHONE: (243) 570-1773 **or** (334) 764-7892

FAX: (894) 446-6592

EMAIL: claims@stonepathins.com

ONLINE: <https://www.vela-ins.com/FirstNoticeOfLoss>

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 28

OVE 06 81 09 15

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**EXCLUSION – VIOLATION OF TRADE OR ECONOMIC SANCTIONS LAWS
OR REGULATIONS**

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

We shall not be liable to provide coverage, pay any claim or provide any benefit hereunder to the extent that the provisions of such coverage, payment of such claim or provisions of such benefit would be in violation of any trade or economic sanctions law or regulation applicable to our jurisdiction of domicile or those of another jurisdiction with which we are legally obligated to comply.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 29

OVE 07 19 02 16

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – ACTS OF DISCRIMINATION

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

1. The following exclusion is added to Paragraph 2., **Exclusions of Section I – Coverage A – Bodily Injury And Property Damage Liability** and Paragraph 2., **Exclusions of Section I – Coverage B – Personal and Advertising Injury Liability**:

This insurance does not apply to:

Discrimination

“Bodily injury” or “personal and advertising injury” arising out of, based upon or attributable to an “act of discrimination.”

2. The following definition is added to the **Section V - Definitions**:

“Act of discrimination” means any act or omission of any insured or any person acting on behalf of any insured, undertaken or committed for reason, whether intended or not, including but not limited to race, religion, creed, age, gender, gender identity, national origin, disability, handicap, status as an individual with a disability (as defined in the Americans with Disabilities Act of 1990 including any amendments thereto), sexual orientation or preference, pregnancy and any act or failure to act with respect to public accommodation or accessibility as required under the Americans with Disabilities Act of 1990 including any amendments thereto.

All other terms and conditions of this policy shall remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 30

OVE 07 80 08 16

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

COMMERICAL GENERAL LIABILITY POLICY CONDITIONS

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

Section IV – Commercial General Liability Conditions is amended to include the following additional conditions:

A. Cancellation

1. The first Named Insured shown in the Declarations may cancel this policy by surrender thereof to us, or by written notice to us stating when thereafter such cancellation shall be effective. Such notice shall be sufficient notice and the effective date of cancellation stated in the notice shall become the end of the policy period.
2. We may cancel this policy by mailing or delivering to the first Named Insured shown in the Declarations written notice stating when, not less than sixty (60) days thereafter, such cancellation shall be effective. However, if we cancel this policy because you have failed to pay a premium when due, this policy may be canceled by us by mailing or delivering a written notice of cancellation to the first Named Insured shown in the Declarations stating when, not less than ten (10) days thereafter, such cancellation shall be effective. The notice of cancellation shall state the reason for cancellation. The mailing of such notice shall be sufficient notice and the effective date of cancellation stated in the notice shall become the end of the policy period. Delivery of such written notice by us shall be equivalent to mailing.
3. If this policy is canceled, we will send the you any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured shown in the Declarations cancels, the refund may be less than pro rata. However, in no event shall we retain less than the Minimum Earned Premium at Inception. The cancellation will be effective even if we have not made or offered a refund.

B. Changes

This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the Declarations is authorized to make changes in the terms of this policy with our consent. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

C. Examination Of Your Books And Records

We may examine and audit your books and records as they relate to this policy at any time during the policy period and up to three years afterward.

D. Inspections And Surveys

1. We have the right to:
 - a. Make inspections and surveys at any time;
 - b. Give you reports on the conditions we find; and
 - c. Recommend changes.

2. We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And we do not warrant that conditions:
 - a. Are safe or healthful; or
 - b. Comply with laws, regulations, codes or standards.
3. Paragraphs 1. and 2. of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations.
4. Paragraph 2. of this condition does not apply to any inspections, surveys, reports or recommendations we may make relative to certification, under state or municipal statutes, ordinances or regulations, of boilers, pressure vessels or elevators.

E. Premiums

The first Named Insured shown in the Declarations:

1. Is responsible for the payment of all premiums; and
2. Will be the payee for any return premiums we pay.

F. Transfer Of Your Rights And Duties Under This Policy

The interests or rights hereunder of any insured under this policy are not assignable, except with our prior written consent.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ASBESTOS EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

The following exclusion is added to Paragraph **2. Exclusions** of both **Section I – Coverage A – Bodily Injury And Property Damage Liability** and **Section I – Coverage B – Personal And Advertising Injury Liability**:

2. Exclusions

This insurance does not apply to:

Asbestos

- a.** “Bodily injury,” “property damage,” or “personal and advertising injury” arising out of, resulting from, caused by, attributed to, or related to any actual, alleged, threatened, or suspected discharge, dispersal, release, leakage, leaching, friability, flaking, escape, inhalation of, ingestion of, contact with, exposure to, existence of, or presence of asbestos, whether or not the asbestos is or was at any time airborne as a particle, contained in a product, carried on clothing, inhaled, transmitted in any fashion or found in any form whatsoever.
- b.** Any loss, cost, or expense, including, but not limited to, payment for investigation, defense, judgment, settlement, demand, fines, penalties, and other costs or expenses arising out of or related to any abating, testing for, detecting, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, enclosing, remediating, complying, mitigating, disposing of, or in any way responding to or assessing asbestos, the effects of asbestos, or the taking of action to temporarily or permanently prevent, minimize, or mitigate damage to the public health or welfare or to the environment or to meet or attempt to meet any statutory or regulatory requirement or standard.

This exclusion applies regardless of whether any other factor contributed concurrently or in any sequence to any loss, damage, injury, or expense.

This exclusion includes:

- a.** Any supervision, instructions, recommendations, warnings, or advice given or which should have been given in connection with the above; and
- b.** Any obligation to share damages with or repay someone else who must pay damages.

Policy: VNPL999242
Insured Name: Cedarline Works
Number: 32

OVE 04 95 09 13

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PUNITIVE DAMAGES EXCLUSION

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

The following exclusion is added to Paragraph **2. Exclusions** of **Section I – Coverage A – Bodily Injury And Property Damage Liability** and Paragraph **2. Exclusions** of **Section I – Coverage B – Personal And Advertising Injury Liability**:

2. Exclusions

This insurance does not apply to:

Punitive Damages

Punitive or exemplary damages.

Policy: VNPL999242
Insured Name: Cedarline Works
Number: 33

OVE 06 39 09 14

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – CROSS LIABILITY - NAMED INSURED

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

This insurance does not apply to any claim or "suit" initiated, alleged, brought by, or caused to be brought by any
Named Insured GRANITE ROW INDUSTRIES

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION OF OTHER ACTS OF TERRORISM COMMITTED OUTSIDE THE UNITED STATES

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

A. The following exclusion is added:

This insurance does not apply to:

Other Acts of Terrorism

"Any injury or damage" arising, directly or indirectly, out of an "other act of terrorism" that is committed outside of the United States (including its territories and possessions and Puerto Rico), but within the "coverage territory".

B. The following definitions are added:

1. "Any injury or damage" means any injury or damage covered under any Coverage Part to which this endorsement is applicable, and includes but is not limited to "bodily injury", "property damage", "personal and advertising injury", "injury" or "environmental damage" as may be defined in any applicable Coverage Part.
2. "Other act of terrorism" means activities against persons, organizations or property of any nature:
 - a. That involve the following or preparation for the following:
 - (1) Use or threat of force or violence; or
 - (2) Commission or threat of a dangerous act; or
 - (3) Commission or threat of an act that interferes with or disrupts an electronic, communication, information, or mechanical system; and
 - b. When one or both of the following applies:
 - (1) The effect is to intimidate or coerce a government or the civilian population or any segment thereof, or to disrupt any segment of the economy; or
 - (2) It appears that the intent is to intimidate or coerce a government, or to further political, ideological, religious, social or economic objectives or to express (or express opposition to) a philosophy or ideology.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 35

VP 08 39 05 17 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMENDED SECTION II. COVERAGE EXTENSIONS, PART A.

DISCIPLINARY PROCEEDINGS

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

- I. Section II. **COVERAGE EXTENSIONS, A. Disciplinary Proceedings** of the Policy, is deleted in its entirety and replaced with the following:

Cedarline will reimburse the **Insured** for **Disciplinary Proceeding Loss**. The maximum amount Cedarline will pay for a **Disciplinary Proceeding** covered by this Policy shall be \$50,000. The maximum amount Cedarline will pay for all **Disciplinary Proceeding Loss** covered by this Policy shall be \$50,000 in the Aggregate, regardless of the number of **Insureds** against whom **Disciplinary Proceedings** are instituted during the **Policy Period** or the number of **Disciplinary Proceedings** that are instituted against the **Insureds** during the **Policy Period**. As a condition precedent to coverage, the **Disciplinary Proceeding** must be first instituted against the **Insured** during the **Policy Period** and the **Disciplinary Proceeding** must arise from a **Wrongful Act** committed by the **Insured** that first commences on or after the **Retroactive Date** and before the expiration of the **Policy Period**. Cedarline will have no duty to pay any **Disciplinary Proceeding Loss** unless the **Insured** provides written notice of the **Disciplinary Proceeding** to Cedarline during or within sixty (60) days after the **Policy Period**.

The Deductible amount will not apply to this subsection and any **Disciplinary Proceeding Loss** will not reduce the Each **Claim** or Aggregate Limits of Tallgrass Logistics

Tallgrass Logistics will have no obligation to appoint counsel for the **Insured** to respond to a **Disciplinary Proceeding**.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 36

VP 08 51 05 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CONSENT TO SETTLE AMENDMENT-MISCELLANEOUS

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section III. **DEFENSE AND SETTLEMENT**, E., is deleted in its entirety and replaced by the following:

- E.** Cedarline shall have the right to negotiate and effectuate the settlement of all **Claims**, as Cedarline deems expedient, whether within or in excess of the Deductible amount. However, Cedarline will not settle any **Claim** without the consent of the **Named Insured**, which consent will not be unreasonably withheld. If the **Named Insured** refuses to consent to a settlement demand recommended by Cedarline (hereinafter referred to as the "recommended settlement amount") and instead elects to contest such **Claim** or continue legal proceedings in connection therewith, Cedarline's liability for such **Claim** shall, subject to the Policy's Each **Claim** and Aggregate Limits of Liability and Deductible amount, be limited to the recommended settlement amount, plus all **Claim Expenses** in excess of the Deductible amount incurred through the time the **Named Insured** refused to consent to the recommended settlement amount, plus 80 percent (%) of all **Claim Expenses** incurred after the **Named Insured** refused to consent to the recommended settlement amount, and 80 percent (%) of all covered **Loss** in excess of the recommended settlement amount.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 37

VP 08 53 05 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SUPPLEMENTARY PAYMENTS

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section VIII. DEFINITIONS, C., is amended to add the following:

- C. Claims Expenses** include reasonable expenses incurred, including actual and verifiable loss of wages, if the **Insured** is required by Cedarline to attend proceedings or trial in the defense of a covered **Claim**. Such payments are subject to the following:
1. The maximum reimbursement for such expenses shall not exceed \$250 per day for each **Insured** who attends such proceedings at Cedarline's request;
 2. Cedarline's maximum total liability for all such expenses shall be \$5,000 Each **Claim** Limit and not the amount set forth on the Declarations Page of this Policy regardless of the number of **Insureds** who attend such proceedings at Cedarline's request;
 3. This amount shall be part of, and not in addition to, the Limits of Liability set forth on the Declarations Page of this Policy.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 38

VP 03 05 10 17

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

COMMINGLING OF FUNDS EXCLUSION

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section IV – Exclusions, is amended to add the following exclusion:

This Policy does not apply to any **Claim** and the **Company** will not pay any **Loss** or **Claim Expenses** for any **Claim** made by or against, alleging, arising out of, based upon, or attributable to any actual or alleged:

1. Commingling, improper use of, failure to properly segregate, safeguard or collect, or theft or conversion of funds, including but not limited to any escrow, trust or mortgage funds.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number 39

VP 09 16 04 18

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

MEDIA AMENDATORY WITH SUBLIMITS

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

- I. **Section IV. Exclusions, D. Intellectual Property**, is deleted in its entirety and replaced by the following:

D. Intellectual Property

Infringement or inducement of infringement of patent or trade secret; or unfair competition based upon infringement of patent or trade secret.

- II. **Section IV. EXCLUSIONS**, is amended to add the following exclusions:

This Policy does not apply to any **Claim** and the **Company** will not pay any **Loss** or **Claim Expenses** for any **Claim** alleging, arising out of, based upon, or attributable to any actual or alleged:

1. Cost Estimates

Exceeding of cost or of price estimates or projections made by an **Insured**.

2. Recall / Reprinting

Recall, withdrawal, remediation or replacement of or any costs incurred for reprinting any print media which is alleged to have caused any **Media Injury**.

3. Licensing Claims

Claims brought against an **Insured** by any entity that licenses or administers intellectual property, including but not limited to the American Society of Composers, Authors and Publishers (ASCAP), the Recording Industry Association of America (RIAA), the European Stage Authors and Composers (ESAC) and Broadcast Music, Inc. (BMI).

4. Unfair or Deceptive Trade Practices

Violation of any local, state or federal Consumer Protection or Unfair or Deceptive Trade Practices statute or regulation.

5. Failure to Make Licensing or Royalty Payments

Failure of any **Insured** to make licensing or royalty payments.

6. False Advertising

Intentionally false, deceptive or misleading advertising or solicitation by an **Insured**, however, the **Company** will defend any such **Claim** until there has been a final adjudication that the **Insured's** advertising or solicitation was intentionally false, deceptive or misleading.

7. Client Print Media

Claims made against the **Insured** by clients of the **Insured** if such **Claim** is a result of print media or **Content** furnished by the client of the **Insured**.

III. **Section VIII. Definitions, J. Personal and Advertising Injury** is deleted in its entirety.

IV. **Section VIII. Definitions, P. Wrongful Act** is deleted in its entirety and replaced by the following:

P. Wrongful Act means any negligent act, error or omission or breach of professional duty, or **Media Injury**, committed solely in the rendering of or failure to render HARBOR POINT BUILDERS by an **Insured**.

V. **Section VIII. Definitions** is amended to add the following:

1. **Media Injury** means publication, utterance, distribution or dissemination by an **Insured** in any print media, or **Content**, including social media, in connection with the **Insured's** performance or advertising of its HARBOR POINT BUILDERS that:

- a) Violates the right to privacy or publicity, including (a) intrusion upon the seclusion or solitude of a natural person; (b) misappropriation of a natural person's name or likeness for a commercial advantage; (c) public disclosure of private facts; and (d) publicity that unreasonably places a natural person in a false light before the public;
- b) Libels, slanders or disparages a natural person or an organization's goods or services;
- c) Intentionally inflicts emotional distress on a natural person;
- d) Infringes on a natural person's or organization's copyright, trademark, trade dress, trade name, service mark, service name, title, or slogan, including claims for unfair competition, palming off, or violations of the Lanham Act;
- e) Constitutes piracy or plagiarism; or
- f) Constitutes an invasion of any right to private occupancy, including trespass, wrongful eviction, wrongful entry, or eavesdropping.

2. **Content** means mappings, drawings, advertisement, publicity, press release or article, publication, marketing or promotional item, broadcast, telecast or webcast.

Content shall not mean content disseminated by other means of media transmittal by the **Insured**.

VI. Solely with respect to all **Claims** involving or relating to **Media Injury**, the maximum Limits of Liability for all **Loss** and **Claim Expenses** arising from all such **Claims** shall be \$1,000,000 **Each Claim Limit** and \$1,000,000 **General Aggregate Limit** and not the amount set forth on the Declarations Page of this Policy. This amount shall be part of, and not in addition to, the Limits of Liability set forth on the Declarations Page of this Policy.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number 40

VP 09 17 04 18

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SEASONAL, TEMPORARY OR LEASED EMPLOYEE

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

I. Section VIII. DEFINITIONS, G. Insured(s), is deleted in its entirety and replaced by the following:

G. Insured(s) means:

1. The **Named Insured** IRONVALE HOLDINGS
2. Any **Subsidiary**;
3. Any partner, director or officer of the **Named Insured** or **Subsidiary**, but only while rendering
HARBOR POINT BUILDERS while the partner, director or officer is acting in their respective capacity
as such;
4. Any employee of the **Named Insured** or **Subsidiary**, but only while rendering HARBOR POINT BUILDERS
on behalf of the **Named Insured** or **Subsidiary**;
5. Any former partner, director, officer, or employee of the **Name Insured** or **Subsidiary** but only
with respect to HARBOR POINT BUILDERS performed on behalf of the **Named Insured** or
Subsidiary prior to the termination of that respective capacity;
6. The current spouse or domestic partner of any current partner, director, officer or employee of
the **Named Insured** or **Subsidiary**, but solely with respect to the liability of such **Insured** that
GRANITE ROW AUTOMOTIVE SERVICES
7. The heirs, executors, administrators, and legal representatives of any **Insured** in the event of
death, incompetency, insolvency or bankruptcy of that **Insured**, but solely with respect to the
liability of such **Insured** that GRANITE ROW AUTOMOTIVE SERVICES
8. A limited liability company, if the **Named Insured** or any other **Insured** exists as such, along
with all past and present members of any such limited liability company, but only while
rendering HARBOR POINT BUILDERS on behalf of the **Named Insured** or **Subsidiary**; and
9. Any seasonal, temporary or leased Employee of the **Named Insured** or **Subsidiary**, but only
while rendering HARBOR POINT BUILDERS on behalf of the **Named Insured** or **Subsidiary**.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 41

OVE 09 21 04 18

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

DEDUCTIBLE – PER OCCURRENCE OR OFFENSE
APPLICABLE TO INDEMNITY AND EXPENSES

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

Schedule	
Coverage	Deductible Amount Per Occurrence or Offense
Bodily Injury Liability; Property Damage Liability and / or Personal and Advertising Injury Liability Combined	\$2,500

The deductible applies to damages for all "bodily injury", "property damage" and / or "personal and advertising injury" however caused, and to payments made under the Supplementary Payments provisions of this policy including but not limited to all expenses we incur to investigate or settle a claim or defend a "suit":

- A.** Our obligation under the Bodily Injury Liability, Property Damage Liability or Personal and Advertising Injury Liability Coverages to pay damages on your behalf, and to pay associated defense costs, expenses and other payments specified under Supplementary Payments, including but not limited to the expenses we incur to investigate or settle a claim or defend a suit, applies only to the amount of damages and associated Supplementary Payments in excess of any deductible amount stated in the Schedule above.
- B.** The deductible amount shall include all associated defense costs, investigation expenses, and other payments specified under Supplementary Payments whether or not indemnity or loss payment is made.
- C.** The deductible is on per occurrence basis and applies to all damages because of:
 - 1. "Bodily injury";
 - 2. "Property damage";
 - 3. "Personal and advertising injury"; or
 - 4. "Bodily injury", "property damage" and "personal and advertising injury" combined
as the result of any one "occurrence" or offense regardless of the number of persons or organizations who sustain damages because of that "occurrence" or offense.
- D.** The terms of this insurance, including those with respect to:
 - 1. Our right and duty to defend an insured against any "suits" seeking those damages; and

2. An insured's duties in the event of an "occurrence", offense, claim, or "suit" apply irrespective of the application of the deductible amount.

- E. We may pay any part, or all, of the deductible amount to effect settlement of any claim or "suit" and, upon notification of the action taken you shall promptly reimburse us for such part of the deductible amount as has been paid by us.
- F. If you do not promptly reimburse us for any deductible amount owed, then any cost incurred by us in the collection of the deductible amount will be added and applied in addition to the applicable deductible amount without any limitation. These costs include, but are not limited to, collection agency fees, attorney's fees and interest.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number 42

OVE 66 40 09 14

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – CONTINUOUS OR PROGRESSIVE DAMAGE CLAIMS

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

The following exclusion is added to Paragraph 2. **Exclusions** of both **Section I – Coverage A – Bodily Injury And Property Damage Liability** and **Section I – Coverage B – Personal And Advertising Injury Liability**:

2. Exclusions

This insurance does not apply to:

Continuous or Progressive Damage Claims

Any “bodily injury”, “property damage”, or “personal and advertising injury” which is or is alleged to be continuing or progressive in nature where any damage of any kind began or is alleged to have begun prior to the effective date of this policy. This exclusion will apply whether or not the alleged damage or cause of the alleged damage was known to any person or entity prior to the effective date of this policy.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 43

OVE 09 14 03 18

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**AMENDMENT – COVERAGE TERRITORY –
U.S. TERRITORIES AND POSSESSIONS, PUERTO RICO
AND CANADA EXCLUDED**

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

The definition of "coverage territory in the **Definitions** Section is deleted in its entirety and replaced by the following:

"Coverage territory" means:

- a.** The United States of America (not including its territories or possessions);
- b.** International waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in Paragraph **a.** above; or
- c.** All other parts of the world if the injury or damage arises out of:
 - (1)** Goods or products made or sold by you in the territory described in Paragraph **a.** above;
 - (2)** The activities of a person whose home is in the territory described in Paragraph **a.** above, but is away for a short time on your business; or
 - (3)** "Personal and advertising injury" offenses that take place through the Internet or similar electronic

FAIRMOUNT MOTORWORKS

provided the insured's responsibility to pay damages is determined in a "suit" on the merits, in the territory described in Paragraph **a.** above or in a settlement we agree to.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 44

VP 09 55 01 19

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

THIRD PARTY DISCRIMINATION \$100,000 SUBLIMIT

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section IV. Exclusions, P., Third Party Discrimination and Sexual Harassment, Paragraph 2., is deleted in its entirety and replaced with the following:

2. Discrimination against any customer or client of an **Insured** or any other natural person who is not an employee of an **Insured** on account of race, ethnicity, religion, sex, age, disability, sexual preference or any other protected category or characteristic under any local, state or federal law, regulation or ordinance.

Notwithstanding this exclusion, the maximum Sublimits of Liability for all **Loss** and **Claim Expenses** arising from all such **Claims** shall be \$100,000 Each **Claim** Limit and \$100,000 General Aggregate Limit and not the amount set forth on the Declarations Page of this Policy. This amount shall be part of, and not in addition to, the Limits of Liability set forth on the Declarations Page of this Policy.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number 45

OVE 09 59 11 19

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

LIMITATIONS ON SCOPE OF COVERAGE

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

Schedule of Covered Operations and Work	
RIDGEWAY AUTOMOTIVE	; Music subscription Platform.

Coverage under this Policy for claims of "bodily injury," "property damage," or "personal and advertising injury" is limited to liability caused by the operations or work described in the above Schedule.

This endorsement applies to all insureds, including additional insureds. In the event that this endorsement does or may conflict with the language of any additional insured endorsements to this Policy, then this endorsement shall govern and control the scope of coverage.

As a condition of coverage, the Named Insured is required to provide us with proof that its work or operations, which give rise to a claim or "suit" against an insured, were limited to those shown in the above Schedule.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number 46

VP 09 62 07 19

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMENDED PREAMBLE

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

It is agreed that the Preamble of this Policy is deleted in its entirety and replaced with the following:

In consideration of the payment of the Premium, the undertaking of the **Insured** to pay the Deductible herein and in reliance upon all statements made and information in the **Application**, which is made a part of this Policy and deemed to be incorporated herein, and subject to all of the terms and conditions of this Policy, the **Company** agrees with the **Insured** as follows:

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 47

VP 09 68 05 25

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

COMMUNICABLE DISEASE EXCLUSION

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

I. Section IV. EXCLUSIONS is amended to add the following exclusions:

This Policy does not apply to any **Claim** and the **Company** will not pay any **Loss** or **Claim Expenses** for any **Claim** alleging, arising out of, based upon, or attributable to any actual or alleged:

Communicable Disease

Communicable Disease regardless of whether the **Communicable Disease** is transmitted, symptomatic, manifest, or causes apparent harm, injury, or damage.

This exclusion applies even if the **Claim** arises out of **Wrongful Acts** in the:

1. Supervising, hiring, employing, training or monitoring of others that may be infected with and spread a **Communicable Disease**;
2. Testing, failing to test, or delaying testing for a **Communicable Disease**;
3. Failure to prevent the spread of the **Communicable Disease**;
4. Failure to report the **Communicable Disease** to authorities;
5. Cleaning, clearing, closing, maintenance, or inspection of any premises;
6. Oral or written communications or publications; or
7. Acts, errors or omissions related to an **Advertisement**.

II. Section VIII. DEFINITIONS is amended to include the following:

Communicable Disease means any disease, infection, sickness, illness, condition, disorder or syndrome, whether symptomatic or dormant, and whether temporary or permanent, that is or is capable of being transmitted to or from a person or animal, from any source, including but not limited to transmission through bacteria, viruses, yeasts, spores, mycotoxins, or any pathogen.

Advertisement means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters.

For the purpose of this definition:

1. Notices that are published include material placed on the Internet or on similar electronic means of communication; and
2. Regarding web-sites, only that part of a web-site that is about your goods, products or services for the purposes of attracting customers or supporters is considered an **Advertisement**.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 48

OVE 09 66 04 20

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – COMMUNICABLE DISEASE

This endorsement modifies insurance provided under the following:

Commercial General Liability Coverage Part

A. The following exclusion is added to Paragraph 2. Exclusions of Section I – Coverage A – Bodily Injury And Property Damage Liability:

2. Exclusions

This insurance does not apply to:

Communicable Disease

"Bodily injury" or "property damage" arising out of or related to a "communicable disease." This exclusion applies to all claims and "suits" regardless of whether the "communicable disease" is transmitted, symptomatic, manifest, or causes apparent harm, injury, or damage.

This exclusion applies even if the claim or "suit" alleges negligence or other wrongdoing in:

- (1) Supervising, hiring, employing, training or monitoring of others that may be infected with or spread a "communicable disease";
- (2) Testing, failing to test, or delaying testing for a "communicable disease";
- (3) Failure to prevent the spread of a "communicable disease";
- (4) Failure to report a "communicable disease" to authorities; or
- (5) Cleaning, clearing, closing, maintenance, or inspection of any premises.

B. The following exclusion is added to Paragraph 2. Exclusions of Section I – Coverage B – Personal and Advertising Injury Liability:

2. Exclusions

This insurance does not apply to:

Communicable Disease

"Personal and advertising injury" arising out of or related to a "communicable disease." This exclusion applies to all claims and "suits" regardless of whether the "communicable disease" is transmitted, symptomatic, manifest, or causes any apparent harm, injury, or damage.

This exclusion applies even if the claim or "suit" alleges negligence or other wrongdoing in:

- (1) Supervising, hiring, employing, training or monitoring of others that may be infected with or spread a "communicable disease";
- (2) Testing, failing to test, or delaying testing for a "communicable disease";

- (3) Failure to prevent the spread of a “communicable disease”;
- (4) Failure to report a “communicable disease” to authorities;
- (5) The cleaning, clearing, closing, maintenance, or inspection of any premises;
- (6) Oral or written communications or publications; or
- (7) Acts, errors or omissions related to an “advertisement.”

C. The following definition is added to - **Definitions:**

“Communicable disease” refers to and includes any disease, infection, sickness, illness, condition, disorder or syndrome, whether symptomatic or dormant, and whether temporary or permanent, that is or is capable of being transmitted to or from a person or animal, through any source, including but not limited to transmission through bacteria, viruses, yeasts, spores, mycotoxins, or any pathogen.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 49

VP 09 97 06 22

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NETWORK SECURITY, PRIVACY BREACH AND BIOMETRIC IDENTIFIERS OR BIOMETRIC INFORMATION EXCLUSIONS

This endorsement modifies insurance provided under the Professional Liability Insurance Policy to which this endorsement is attached. If a Cyber Coverage Endorsement is included with this Professional Liability Insurance Policy, this Network Security, Privacy Breach, and Biometric Identifiers or Biometric Information Exclusion does not apply to that Cyber Coverage Endorsement.

Professional Liability Coverage Part

I. Section IV. EXCLUSIONS, is amended to add the following exclusions: Any **Claim** alleging, arising out of, based upon, or attributable to any actual or alleged:

1. Network Security or Privacy Breach

- 2.** Violation of any state, federal or local statute regulating the collection, use, safeguarding, handling, storage, retention or destruction of **Biometric Identifiers** or **Biometric Information** or any other **Claim** based upon, arising out of, or in any way involving the collection, use, safeguarding, handling, storage, retention or destruction of **Biometric Identifiers** or **Biometric Information**.

II. Section VIII. DEFINITIONS, is amended to add the following:

Network Security or Privacy Breach means:

- 1.** The failure by the Insured to properly handle, manage, store, destroy or otherwise control confidential corporate or personally identifiable information, including but not limited to: patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any other type of nonpublic information;
- 2.** Any violation of the **Insured's** privacy policy, or any violation by the **Insured** of:
 - a.** Section 5(a) of the Federal Trade Commission Act, 15 U.S.C. § 45(a), but solely for alleged violations of unfair or deceptive acts or practices in or affecting commerce;
 - b.** The California Security Breach Notification Act (CA SB 1386);
 - c.** The Drivers Privacy Protection Act ("DPPA") 18 U.S.C. § 2721, et. Seq.;
 - d.** The Gramm-Leach-Bliley Act of 1999;
 - e.** The Health Insurance Portability and Accountability Act of 1996 (Public Law 104-191), or
 - f.** Any violation of any other similar state, federal, and foreign identity theft and privacy protection legislation that requires commercial entities that collect personal information to post privacy policies, adopt specific privacy or security controls, or provide notice to affected natural persons of any actual or potential unauthorized access to, acquisition of or misuse of confidential information.

3. A failure in network security, including but not limited to activities performed by the **Insured** to protect against unauthorized access to, unauthorized use of, a denial of service attack directed against, or transmission of malicious code to the **Insured's** computer system.

Biometric Identifiers means:

Any form of identification related to intrinsic human characteristics or patterns, including but not limited to retina or iris scans, fingerprints, voiceprints, or scans of hand or face geometry, vein patterns and ear recognition. **Biometric Identifiers** do not include writing samples, written signatures, photographs, human biological samples used for valid scientific testing or screening, demographic data, tattoo descriptions, height, weight, hair color, or eye color. **Biometric Identifiers** do not include donated organs, tissues, or parts or blood or serum stored on behalf of recipients or potential recipients of living or cadaveric transplants and obtained or stored by a federally designated organ procurement agency. **Biometric Identifiers** do not include biological materials regulated under any state or federal Genetic Information Privacy statute. Biometric identifiers do not include information captured from a patient in a health care setting or information collected, used, or stored for health care treatment, payment, or operations under the federal Health Insurance Portability and Accountability Act of 1996. **Biometric Identifiers** do not include an X-ray, roentgen process, CT, MRI, or PET scans, mammography, or other image or film of the human anatomy used to diagnose, prognose, or treat an illness or other medical condition or to further validate scientific testing or screening.

Biometric Information means:

Any information, regardless of how it is captured, converted, stored, or shared, based on an individual's **Biometric Identifier** used to identify an individual. **Biometric Information** does not include information derived from items or procedures excluded under the definition of **Biometric Identifiers**.

III. Section VIII. DEFINITIONS, H. Loss, is amended to include the following:

Loss shall not include notification costs, credit monitoring expenses, forensic expenses, public relations expenses, fines, penalties, or any **Claim Expenses** incurred by or on behalf of the **Insured** arising out of any unauthorized access to or disclosure of any person's or organization's confidential or personal information including patents, trade secrets, processing methods, customer lists, financial information, credit card information, health information or any other type of nonpublic information.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 50

OVE 10 12 07 23

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – BIOMETRIC INFORMATION

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

A. The following exclusion is added to Paragraph 2. **Exclusions of Section I – Coverages – Coverage A Bodily Injury And Property Damage and Coverage B Personal And Advertising Injury Liability:**

2. Exclusions

This insurance does not apply to:

Biometric Information

“Bodily Injury”, “Property Damage”, “Personal and Advertising Injury”, damages, costs, and expenses, either directly or indirectly because of, caused by or arising out of:

- a) the actual or alleged collection, use, access, safeguarding, sharing, storage, retention, conversion, disclosure, sale, disposal, transmitting, distributing, or destruction of any “Biometric identifiers” or “Biometric information”, or failure to obtain consent for any of the foregoing; or
- b) a claim, investigation, demand, “suit” or proceeding involving an actual or alleged invasion of privacy or violation of a right to privacy and a “Biometric identifiers” or “Biometric information”; or
- c) an actual or alleged violation of any privacy law, including the Illinois Biometric Information Privacy Act (BIPA), the California Consumer Privacy Act (CCPA), the California Privacy Rights Act (CPRA), EU General Data Protection Regulation (GDPR) or any other similar law, ordinance, regulation, or statute anywhere in the world that governs or relates to the collection, use, access, safeguarding, sharing, storage, retention, conversion, disclosure, sale, disposal, transmitting, distributing, or destruction of any “Biometric identifiers” or “Biometric information” or obtaining consent for any of the foregoing.

The exclusions above apply regardless of any insured’s culpability or intent and regardless of whether the claim, investigation, demand, “suit”, proceeding or allegation against any insured alleges negligence or other wrongdoing in the supervision, hiring, employment, training, or monitoring of others by any insured.

B. The following definitions are added to **Section V – Definitions:**

“Biometric identifiers” means any physical, genetic, physiological, biological, or behavioral characteristic or attribute that allows an individual to be identified. Without limiting the foregoing, “biometric identifiers” includes but is not limited to the following: (a) retina or iris scan; (b) fingerprint;

(c) voiceprint; (d) DNA; (e) finger, hand, or palm scan; (f) scan of hand or face geometry; (g) vein patterns; (h) voice recordings; (i) keystroke patterns or rhythms; (j) gait patterns or rhythms; (k) sleep, health, or exercise data that contain identifying information; or (l) any other biometric algorithm or measurement of (a) through (k) or any other physical, genetic, physiological, biological or behavioral characteristic or attribute which allows an individual to be identified.

“Biometric information” means any information, regardless of how it is captured, converted, stored, or shared, that is based on, or includes, any “biometric identifiers”.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 51

COMMERCIAL GENERAL LIABILITY
OCG 40 35 12 23
Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION – CYBER INCIDENT

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

A. The following is added to Paragraph 2. Exclusions of Section I – Coverage A – Bodily Injury And Property Damage Liability:

2. Exclusions

This insurance does not apply to:

Cyber Incident

"Bodily injury" or "property damage" arising out of a "cyber incident".

This exclusion applies even if damages are claimed for notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other similar cost or expense incurred by you or others arising out of a "cyber incident".

B. The following is added to Paragraph 2. Exclusions of Section I – Coverage B – Personal And Advertising Injury Liability:

2. Exclusions

This insurance does not apply to:

Cyber Incident

"Personal and advertising injury" arising out of a "cyber incident".

This exclusion applies even if damages are claimed for notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other similar cost or expense incurred by you or others arising out of a "cyber incident".

C. For the purposes of this endorsement, the following definition is added to the Definitions Section:

"Cyber incident" means any:

1. Unauthorized access to or use of any computer system.
2. Malicious code, virus or any other harmful code that is directed at, enacted upon or introduced into any computer system and is designed to access, alter, corrupt, damage, delete, destroy, disrupt, encrypt, exploit, use or prevent or restrict access to or the use of any part of any computer system or otherwise disrupt its normal functioning or operation.
3. Denial of service attack which disrupts, prevents or restricts access to or use of any computer system, or otherwise disrupts its normal functioning or operation.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 52

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Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**TOTAL PERFLUOROALKYL AND POLYFLUOROALKYL SUBSTANCES
(PFAS) EXCLUSION ENDORSEMENT**

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

- A.** The following exclusion is added to **Paragraph 2. Exclusions of Section I – Coverage A – Bodily Injury And Property Damage Liability and Coverage B – Personal and Advertising Injury Liability:**

2. Exclusions

This insurance does not apply to:

PFAS

- i. “Bodily Injury”, “Property Damage”, “Personal and Advertising Injury”, medical expenses, damages (including but not limited to punitive damages or exemplary damages), loss, penalties, fines, fees, costs or expenses, or any other relief, of any kind whatsoever; and/or
- ii. any claim, demand, obligation, request, investigation, notice, order, action, settlement, consent decree, agreement, remediation program, suit, or proceeding, of any kind whatsoever, including but not limited to civil, criminal, administrative, or regulatory, brought by or on behalf of a “Governmental Authority”, natural person, business, organization, or other entity;

actually or allegedly, and directly or indirectly, arising from or out of, caused by, based upon, attributable to, related to, contributed to by, or in any way involving, in whole or in part:

- a) “PFAS”, including but not limited to any actual, alleged, threatened, potential, or suspected:
 - i. breach of duty, breach of standard of care, act, error, omission, failure to properly act, failure to properly perform any service or professional service, or a violation of any law, statute or regulation in relation to “PFAS”;
 - ii. inhalation, ingestion, absorption, consumption, discharge, dispersal, handling, testing, flaking, leakage, leaching, friability, migration, seepage, release of, escape of, contact with, exposure to, existence of, or presence of “PFAS”;
 - iii. use, including but not limited to any mandated, sanctioned, authorized, permitted or suggested use, development, manufacture, production, processing, incorporation, packaging, design, distribution, sale, resale, re-branding, handling, transport, replacement, marketing, or advertising of “PFAS” or anything containing “PFAS”; or

- iv. warnings, notices, or instructions regarding “PFAS” or anything containing “PFAS”, or failure to provide warnings, notices, or instructions regarding “PFAS” or anything containing “PFAS”;
- b) investigating, abating, testing for, monitoring for, cleaning up, removing, containing, studying, remediating, mitigating, disposing of, treating, detoxifying, neutralizing, or in any way responding to, addressing, or assessing “PFAS” and/or the actual, alleged, threatened, potential, or suspected effects or presence of “PFAS”, whether in the environment, on property, in a human, animal, or any other living or non-living thing or otherwise; or
- c) warranties or representations made at any time regarding “PFAS” or anything containing “PFAS”, including but not limited to the safety, fitness, quality, durability, performance, toxicity, or environmental persistence of “PFAS” or anything containing “PFAS”, or warranties or representations made at any time regarding anything described in A.2.(a) or A.2.(b) above.

The foregoing provisions apply:

- a) regardless of whether any other cause, event, material, substance, compound, good, or product (including but not limited to “your product”), contributed concurrently or in any sequence to any “Bodily Injury”, “Property Damage”, “Personal and Advertising Injury”, medical expenses, damages (including but not limited to punitive damages or exemplary damages), loss, penalties, fines, fees, costs or expenses, or any other relief, of any kind whatsoever;
- b) to any obligations assumed by you or any other insured under an “insured contract” or any other agreement;
- c) regardless of whether the “products-completed operations hazard” applies;
- d) regardless of whether there was a permit, authorization, or requirement to use “PFAS”, incorporate “PFAS” into your product, or release “PFAS” into the environment, or whether any use, incorporation, or release was legally permissible or in compliance with permissible levels set by a “Governmental Authority”;
- e) to any workplace exposure or occupational exposure to “PFAS” or occupational disease actually or allegedly attributable to “PFAS”; and
- f) to preclude coverage for the entire claim, demand, obligation, request, investigation, notice, order, action, settlement, consent decree, agreement, remediation program, suit, or proceeding, when only a portion of the foregoing involves or concerns “PFAS” or anything containing “PFAS”, even if any other portion would have been covered under this Policy or a duty to defend would have been owed in the absence of “PFAS”.

B. The following definition is added to Section V – Definitions:

1. “PFAS” means:

- (a) Any fluorinated chemical containing at least one fully or partially fluorinated carbon atom, whether polymer or non-polymer, including but not limited to: any perfluoroalkyl and polyfluoroalkyl substances, perfluoroalkyl acid(s), perfluorooctanesulfonic acid(s), perfluoroalkane, hexafluoropropylene oxide-dimer acid(s), perfluorobutanesulfonic acid(s), perfluorohexanesulfonic acid(s), perfluoroalkane sulfonamides, perfluoroalkyl

ether carboxylic acid(s) (including, without limitation, perfluoro-butanoic, perfluoro-hexanoic, perfluoro-octanoic, perfluoro-nonanoic, and perfluoro-decanoic acids), fluorotelomer substances, perfluoroalkane sulfonamide substances, perfluoroalkane sulfonyl fluorides, perfluorodecane sulfonate, ammonium perfluorooctanoate, perfluoroalkyl iodides, per- and polyfluoroalkyl ether-based substances, fluoropolymers, side-chain fluorinated polymers, perfluoropolyethers, perfluorosulfonic acid salts, perfluorosulfonate salts, perfluorocarboxylic acid salts, perfluorocarboxylate salts, all of the foregoing by whatever names known, including but not limited to chemical names, trade names (e.g., "GenX" or "ADONA"), or any other name or descriptor (e.g., "C8");

- (b) Any chemical now or in the future related or similar to the items contained in B.1.(a), including but not limited to those identified in (i) any of the U.S. Environmental Harbor Point's chemical lists, (ii) any list of per- and polyfluoroalkyl substances subject to toxic chemical release reporting under section 313 of the U.S. Emergency Planning and Community Right to Know Act ("EPCRA"), 42 U.S.C. § 11001 et seq., including those now or in the future listed in 40 C.F.R. § 372.65, or (iii) any statute, law, regulation, rule or written proposed rule, guidance document, list, or bulletin issued, adopted, or maintained by any "Governmental Authority";
 - (c) Any polymers, oligomers, monomers, non-polymer chemicals, homologues, isomers, telomers, salts, esters, alcohols, acids, precursors, degradants, derivatives, and breakdown products or by-products associated with any chemical or substance described in paragraphs B.1.(a) or B.1.(b) of this definition; or
 - (d) Any good, product, substance, mixture, food, liquid, supplement, and/or medication, including containers, materials, parts, equipment, or packaging furnished in connection with such good, product, substance, mixture, food, liquid, supplement, and/or medication, that consists of or contains anything described in paragraphs B.1.(a), B.1.(b), or B.1.(c) of this definition.
2. "Governmental Authority" means any national, domestic, international, foreign, federal, state, provincial, local, or tribal government or other political subdivision thereof, whether within or outside the United States, and any agency, body, unit, entity, or any other instrumentality thereof, exercising executive, legislative, judicial, regulatory, or administrative functions of government.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 53

VP 10 34 02 25

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CRISIS MANAGEMENT ENDORSEMENT

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section II. COVERAGE EXTENSIONS is modified to add the following:

Crisis Management

Cedarline will reimburse the **Insured** for reasonable and necessary fees, costs, and expenses incurred by or on behalf of the **Insured**, approved by Cedarline in its sole discretion, for a public relations firm to assist the **Named Insured** or any **Subsidiary** in mitigating reputational harm to the **Named Insured** or any **Subsidiary** caused by an event that in the reasonable opinion of the **Named Insured** or a **Subsidiary** did cause or is reasonably likely to cause significant harm to the reputation of

HARBOR POINT HOLDINGS

This coverage extension does not include remuneration, salaries, or overhead of any **Insured**, or any fees, costs, or expenses incurred prior to approval by Cedarline .

The maximum Cedarline will pay for this coverage extension is \$25,000 per event. The maximum Cedarline will pay is \$25,000 Aggregate for all events within the Policy regardless of the number of such events.

All other terms and conditions of this Policy remain unchanged.

Policy Number: VNPL999242
Insured Name: Cedarline Works
Number: 54

VP 10 35 02 25

Effective Date: 06/20/2025

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**AMENDMENT – RESPONSE TO SUBPOENAS (COVERAGE
EXTENSION B.)**

This endorsement modifies insurance provided under the following:

Professional Liability Coverage Part

Section II. COVERAGE EXTENSIONS, B. Response to Subpoenas, is deleted in its entirety and replaced with the following:

B. Response to Subpoenas

Cedarline will reimburse the **Insured** for reasonable and necessary fees, costs, and expenses incurred by or on behalf of the **Insured** in order to respond to a subpoena that is served on the **Insured** during the **Policy Period** and which arises from the performance of the **Insured's** HARBOR POINT BUILDERS, provided the **Insured** is not a party to the lawsuit, arbitration, or other proceeding that the subpoena is issued in connection with. The maximum Cedarline will pay for an **Insured's** response to any such subpoena served on the **Insured** during the **Policy Period** shall be \$25,000. The maximum Cedarline will pay for all subpoenas served on any **Insureds** during the **Policy Period** shall be \$25,000 in the Aggregate, regardless of the number of such subpoenas served on the **Insureds** during the **Policy Period**. As a condition precedent to coverage, the subpoena must first be served on the **Insured** during the **Policy Period** and the **Insured's** HARBOR POINT BUILDERS that the subpoena arises from must have first commenced on or after the **Retroactive Date**. The **Insured** must give written notice to Cedarline of the subpoena during or within sixty (60) days after the **Policy Period**.

The Deductible amount will not apply to this subsection and any amounts paid pursuant to this subsection will not reduce the Each **Claim** or Aggregate Limits of Tallgrass Logistics

Tallgrass Logistics will have no obligation to appoint counsel for the **Insured** to respond to a subpoena covered by this **Section II.B.** of the Policy.

All other terms and conditions of this Policy remain unchanged.